

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (<i>No collect calls</i>)
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ VETERAN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ SERVICE-DISABLED ☐ 8(A)		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☐	
15. DELIVER TO CODE		16. ADMINISTERED BY CODE			
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE		18a. PAYMENT WILL BE MADE BY CODE			
TELEPHONE NUMBER		18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER ☐		18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
(Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED ☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:					
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (<i>SIGNATURE OF CONTRACTING OFFICER</i>)		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)		30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED

Continuation of Supplies or Services and Prices/Costs**Additional Information/Notes**

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Base Year Contractor shall provide Topside Maintenance and Repair requirement for inspection, maintenance, and repairs to hull, steel structures, dredging equipment, propulsion system, and auxiliary systems aboard the Dredge Wheeler. The contractor must provide all necessary labor, supervision, tools, supplies, materials, equipment, machine shop facilities, and transportation (except those items identified as government-furnished in Section C-5 of the Performance Work Statement PWS), to perform the scope of work, as described in the attached PWS. NOTE: The maximum quantity listed within this CLIN represents the total ceiling available during this period. Task Orders will be issued on specific quantities on an as needed basis. The rates will be fixed for this period. Pricing Arrangement: Firm Fixed Price	1	Years		
Option Line Item 0002	Option Year 1 Pricing Arrangement: Firm Fixed Price	1	Years		
Option Line Item 0003	Option Year 2 Pricing Arrangement: Firm Fixed Price	1	Years		

Option Line Item 0004	Option Year 3 Pricing Arrangement: Firm Fixed Price	1	Years		
Option Line Item 0005	Option Year 4 Pricing Arrangement: Firm Fixed Price	1	Years		

Continuation of Description

Requirements

The U.S. Army Corps of Engineers, New Orleans District has a requirement for a contractor to provide firm-fixed price indefinite delivery/indefinite quantity contract for inspection, maintenance, and repairs to hull, steel structures, dredging equipment, propulsion system, and auxiliary systems aboard the Dredge Wheeler.

0001

Product Service Code : J019

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: Deliveries for Contractor required supplies and equipment will be accepted at the US Army Corps of Engineers District Warehouse located at 7400 Leake Ave, New Orleans, LA 70118 or at the field location of the vessel. Prior notification of expected shipment information is required. DoDAAC: W912P8 CountryCode: USA W07V ENDIST NEW ORLEANS KO CONTRACTING DIVISION, 7400 LEAKE AVE NEW ORLEANS, LA 70118-3651 UNITED STATES
Option Line Item 0002	Inspection and Acceptance Location Both Destination Instructions: Deliveries for Contractor required supplies and equipment will be accepted at the US Army Corps of Engineers District Warehouse located at 7400 Leake Ave, New Orleans, LA 70118 or at the field location of the vessel. Prior notification of expected shipment information is required. DoDAAC: W912P8 CountryCode: USA W07V ENDIST NEW ORLEANS KO CONTRACTING DIVISION, 7400 LEAKE AVE NEW ORLEANS, LA 70118-3651 UNITED STATES
Option	Inspection and Acceptance Location

Line Item 0003	Both Destination Instructions: Deliveries for Contractor required supplies and equipment will be accepted at the US Army Corps of Engineers District Warehouse located at 7400 Leake Ave, New Orleans, LA 70118 or at the field location of the vessel. Prior notification of expected shipment information is required. DoDAAC: W912P8 CountryCode: USA W07V ENDIST NEW ORLEANS KO CONTRACTING DIVISION, 7400 LEAKE AVE NEW ORLEANS, LA 70118-3651 UNITED STATES
Option Line Item 0004	Inspection and Acceptance Location Both Destination Instructions: Deliveries for Contractor required supplies and equipment will be accepted at the US Army Corps of Engineers District Warehouse located at 7400 Leake Ave, New Orleans, LA 70118 or at the field location of the vessel. Prior notification of expected shipment information is required. DoDAAC: W912P8 CountryCode: USA W07V ENDIST NEW ORLEANS KO CONTRACTING DIVISION, 7400 LEAKE AVE NEW ORLEANS, LA 70118-3651 UNITED STATES
Option Line Item 0005	Inspection and Acceptance Location Both Destination Instructions: Deliveries for Contractor required supplies and equipment will be

accepted at the US Army Corps of Engineers District Warehouse located at 7400 Leake Ave, New Orleans, LA 70118 or at the field location of the vessel. Prior notification of expected shipment information is required.

DoDAAC: W912P8

CountryCode: USA

W07V ENDIST NEW ORLEANS

KO CONTRACTING DIVISION, 7400 LEAKE AVE

NEW ORLEANS, LA 70118-3651

UNITED STATES

Continuation of Deliveries or Performance

0001	Delivery Schedule From date of lead time event to completion of performance 5 Calendar Year Date of Award Quantity 1 Years Address and POC Place of Performance DoDAAC: W912P8 CountryCode: USA W07V ENDIST NEW ORLEANS KO CONTRACTING DIVISION, 7400 LEAKE AVE NEW ORLEANS, LA 70118-3651 UNITED STATES
Option Line Item 0002	Delivery Schedule From date of lead time event to completion of performance 5 Calendar Year Date of Award Quantity 1 Years Address and POC Place of Performance DoDAAC: W912P8 CountryCode: USA W07V ENDIST NEW ORLEANS KO CONTRACTING DIVISION, 7400 LEAKE AVE NEW ORLEANS, LA 70118-3651 UNITED STATES
Option	Delivery Schedule

Line Item 0003	From date of lead time event to completion of performance 5 Calendar Year Date of Award Quantity 1 Years Address and POC Place of Performance DoDAAC: W912P8 CountryCode: USA W07V ENDIST NEW ORLEANS KO CONTRACTING DIVISION, 7400 LEAKE AVE NEW ORLEANS, LA 70118-3651 UNITED STATES
Option Line Item 0004	Delivery Schedule From date of lead time event to completion of performance 5 Calendar Year Date of Award Quantity 1 Years Address and POC Place of Performance DoDAAC: W912P8 CountryCode: USA W07V ENDIST NEW ORLEANS KO CONTRACTING DIVISION, 7400 LEAKE AVE NEW ORLEANS, LA 70118-3651 UNITED STATES
Option Line Item 0005	Delivery Schedule From date of lead time event to completion of performance 5 Calendar Year

Date of Award

Quantity 1 Years

Address and POC

Place of Performance

DoDAAC: W912P8

CountryCode: USA

W07V ENDIST NEW ORLEANS

KO CONTRACTING DIVISION, 7400 LEAKE AVE NEW ORLEANS, LA 70118-3651

UNITED STATES

SECTION B
SUPPLIES OR SERVICES AND PRICES/COSTS

Item	Description	QTY	UNIT	Unit Price	Amount
1000	BASE YEAR				
10001	SUPERINTENDENT; S.T.	3000	HR		
10002	SUPERINTENDENT; O.T.	100	HR		
10003	FOREMAN, O.S. MACHINIST; S.T.	8000	HR		
10004	FOREMAN, O.S. MACHINIST; O.T.	450	HR		
10005	O.S. MACHINIST; S.T.	25000	HR		
10006	O.S. MACHINIST; O.T.	500	HR		
10007	WELDER; S.T.	25000	HR		
10008	WELDER; O.T.	500	HR		
10009	PIPEFITTER; S.T.	100	HR		
10010	PIPEFITTER; O.T.	10	HR		
10011	LABORER; S.T.	5000	HR		
10012	LABORER; O.T.	100	HR		
10013	FOREMAN, I.S. MACHINIST; S.T.	500	HR		
10014	FOREMAN, I.S. MACHINIST; O.T.	50	HR		
10015	I.S. MACHINIST; S.T.	4000	HR		
10016	I.S. MACHINIST; O.T.	50	HR		
10017	MATERIALS/PARTS/CONSUMABLES & SUPPLIES .	1	LOT	\$250,000.00	
	INSERT % MARK-UP ON ESTIMATED UNIT PRICE OF \$ 250,000 AND EXTEND TOTAL				
10018	WELDING MACHINE RENTAL	40	WK		
10019	AIR COMPRESSOR RENTAL	40	WK		
10020	TRANSPORTATION, PICK-UP RENTAL	40	WK		
10021	TRANSPORTATION OF PERSONNEL	10000	MILE		
10022	MEALS AND LODGING	1	LOT	\$20,000.00	\$20,000.00
	NOTE: THIS LINE ITEM IS NON-COMPETITIVE. INSERT THE GIVEN AMOUNT ON THE BLANK BID SCHEDULE				

BASE YEAR GRAND TOTAL

2000 1ST OPTIONAL YEAR

20001	SUPERINTENDENT; S.T.	3000	HR	_____	_____
20002	SUPERINTENDENT; O.T.	100	HR	_____	_____
20003	FOREMAN, O.S. MACHINIST; S.T.	8000	HR	_____	_____
20004	FOREMAN, O.S. MACHINIST; O.T.	450	HR	_____	_____
20005	O.S. MACHINIST; S.T.	25000	HR	_____	_____
20006	O.S. MACHINIST; O.T.	500	HR	_____	_____
20007	WELDER; S.T.	25000	HR	_____	_____
20008	WELDER; O.T.	500	HR	_____	_____
20009	PIPEFITTER; S.T.	100	HR	_____	_____
20010	PIPEFITTER; O.T.	10	HR	_____	_____
20011	LABORER; S.T.	5000	HR	_____	_____
20012	LABORER; O.T.	100	HR	_____	_____
20013	FOREMAN, I.S. MACHINIST; S.T.	500	HR	_____	_____
20014	FOREMAN, I.S. MACHINIST; O.T.	50	HR	_____	_____
20015	I.S. MACHINIST; S.T.	4000	HR	_____	_____
20016	I.S. MACHINIST; O.T.	50	HR	_____	_____
20017	MATERIALS/PARTS/CONSUMABLES & SUPPLIES.	1	LOT	<u>\$250,000.00</u>	_____
	INSERT % MARK-UP ON ESTIMATED UNIT PRICE OF \$ 250,000 AND EXTEND TOTAL				
20018	WELDING MACHINE RENTAL	40	WK	_____	_____
20019	AIR COMPRESSOR RENTAL	40	WK	_____	_____
20020	TRANSPORTATION, PICK-UP RENTAL	40	WK	_____	_____
20021	TRANSPORTATION OF PERSONNEL	10000	MILE	_____	_____
20022	MEALS AND LODGING	1	LOT	<u>\$20,000.00</u>	<u>\$20,000.00</u>
	NOTE: THIS LINE ITEM IS NON-COMPETITIVE. INSERT THE GIVEN AMOUNT ON THE BLANK BID SCHEDULE				

1ST OPTIONAL YEAR GRAND TOTAL _____

3000 2ND OPTIONAL YEAR

30001	SUPERINTENDENT; S.T.	3000	HR	_____	_____
30002	SUPERINTENDENT; O.T.	100	HR	_____	_____
30003	FOREMAN, O.S. MACHINIST; S.T.	8000	HR	_____	_____

30004	FOREMAN, O.S. MACHINIST; O.T.	450	HR		
30005	O.S. MACHINIST; S.T.	25000	HR		
30006	O.S. MACHINIST; O.T.	500	HR		
30007	WELDER; S.T.	25000	HR		
30008	WELDER; O.T.	500	HR		
30009	PIPEFITTER; S.T.	100	HR		
30010	PIPEFITTER; O.T.	10	HR		
30011	LABORER; S.T.	5000	HR		
30012	LABORER; O.T.	100	HR		
30013	FOREMAN, I.S. MACHINIST; S.T.	500	HR		
30014	FOREMAN, I.S. MACHINIST; O.T.	50	HR		
30015	I.S. MACHINIST; S.T.	4000	HR		
30016	I.S. MACHINIST; O.T.	50	HR		
30017	MATERIALS/PARTS/CONSUMABLES & INSERT % MARK-UP ON ESTIMATED UNIT PRICE OF \$ 250,000 AND EXTEND TOTAL	1	LOT	\$250,000.00	
30018	WELDING MACHINE RENTAL	40	WK		
30019	AIR COMPRESSOR RENTAL	40	WK		
30020	TRANSPORTATION, PICK-UP RENTAL	40	WK		
30021	TRANSPORTATION OF PERSONNEL	10000	MILE		
30022	MEALS AND LODGING NOTE: THIS LINE ITEM IS NON-COMPETITIVE. INSERT THE GIVEN AMOUNT ON THE BLANK BID SCHEDULE	1	LOT	\$20,000.00	\$20,000.00
2ND OPTIONAL YEAR GRAND TOTAL					
4000	3RD OPTIONAL YEAR				
40001	SUPERINTENDENT; S.T.	3000	HR		
40002	SUPERINTENDENT; O.T.	100	HR		
40003	FOREMAN, O.S. MACHINIST; S.T.	8000	HR		
40004	FOREMAN, O.S. MACHINIST; O.T.	450	HR		
40005	O.S. MACHINIST; S.T.	25000	HR		
40006	O.S. MACHINIST; O.T.	500	HR		

40007	WELDER; S.T.	25000	HR	_____	_____
40008	WELDER; O.T.	500	HR	_____	_____
40009	PIPEFITTER; S.T.	100	HR	_____	_____
40010	PIPEFITTER; O.T.	10	HR	_____	_____
40011	LABORER; S.T.	5000	HR	_____	_____
40012	LABORER; O.T.	100	HR	_____	_____
40013	FOREMAN, I.S. MACHINIST; S.T.	500	HR	_____	_____
40014	FOREMAN, I.S. MACHINIST; O.T.	50	HR	_____	_____
40015	I.S. MACHINIST; S.T.	4000	HR	_____	_____
40016	I.S. MACHINIST; O.T.	50	HR	_____	_____
40017	MATERIALS/PARTS/CONSUMABLES & SUPPLIES.	1	LOT	<u>\$250,000.00</u>	_____
	INSERT % MARK-UP ON ESTIMATED UNIT PRICE OF \$ 250,000 AND EXTEND TOTAL				
40018	WELDING MACHINE RENTAL	40	WK	_____	_____
40019	AIR COMPRESSOR RENTAL	40	WK	_____	_____
40020	TRANSPORTATION, PICK-UP RENTAL	40	WK	_____	_____
40021	TRANSPORTATION OF PERSONNEL	10000	MILE	_____	_____
40022	MEALS AND LODGING	1	LOT	<u>\$20,000.00</u>	<u>\$20,000.00</u>
	NOTE: THIS LINE ITEM IS NON-COMPETITIVE. INSERT THE GIVEN AMOUNT ON THE BLANK BID SCHEDULE				

3RD OPTIONAL YEAR GRAND TOTAL _____

5000 4TH OPTIONAL YEAR

50001	SUPERINTENDENT; S.T.	3000	HR	_____	_____
50002	SUPERINTENDENT; O.T.	100	HR	_____	_____
50003	FOREMAN, O.S. MACHINIST; S.T.	8000	HR	_____	_____
50004	FOREMAN, O.S. MACHINIST; O.T.	450	HR	_____	_____
50005	O.S. MACHINIST; S.T.	25000	HR	_____	_____
50006	O.S. MACHINIST; O.T.	500	HR	_____	_____
50007	WELDER; S.T.	25000	HR	_____	_____
50008	WELDER; O.T.	500	HR	_____	_____
50009	PIPEFITTER; S.T.	100	HR	_____	_____

50010	PIPEFITTER; O.T.	10	HR		
50011	LABORER; S.T.	5000	HR		
50012	LABORER; O.T.	100	HR		
50013	FOREMAN, I.S. MACHINIST; S.T.	500	HR		
50014	FOREMAN, I.S. MACHINIST; O.T.	50	HR		
50015	I.S. MACHINIST; S.T.	4000	HR		
50016	I.S. MACHINIST; O.T.	50	HR		
50017	MATERIALS/PARTS/CONSUMABLES & SUPPLIES.	1	LOT	<u>\$250,000.00</u>	
	INSERT % MARK-UP ON ESTIMATED UNIT PRICE OF \$ 250,000 AND EXTEND TOTAL				
50018	WELDING MACHINE RENTAL	40	WK		
50019	AIR COMPRESSOR RENTAL	40	WK		
50020	TRANSPORTATION, PICK-UP RENTAL	40	WK		
50021	TRANSPORTATION OF PERSONNEL	10000	MILE		
50022	MEALS AND LODGING	1	LOT	<u>\$20,000.00</u>	<u>\$20,000.00</u>
	NOTE: THIS LINE ITEM IS NON-COMPETITIVE. INSERT THE GIVEN AMOUNT ON THE BLANK BID SCHEDULE				

4TH OPTIONAL YEAR GRAND TOTAL _____

1. Abbreviations used as follows:

O.S. = OUTSIDE
I.S. = INSIDE
S.T. = STRAIGHT TIME
O.T. = OVERTIME
HR = HOUR
WK = WEEK

2. A bidder must bid on all contract line items requiring pricing. If a bidder intends to waive costs associated with any contract line item, said bidder must insert descriptive words or abbreviations such as "no cost" or "N/C". If a bidder omits both unit price and amount for any contract line item, the bid shall be declared **NON-RESPONSIVE**.

END OF SECTION B

Performance Work Statement
Topsides Equipment Repair and Maintenance
Aboard the Dredge Wheeler

C-1. GENERAL INFORMATION

1.1 The U.S. Army Corps of Engineers, New Orleans District has a requirement for inspection, maintenance, and repairs to hull, steel structures, dredging equipment, propulsion system, and auxiliary systems aboard the Dredge Wheeler. The contractor must provide all necessary labor, supervision, tools, supplies, materials, equipment, machine shop facilities, and transportation (except those items identified as government-furnished in Section C-5 of this PWS), to perform the scope of work, as described in the following paragraphs.

1.2 The Dredge WHEELER is a sea-going large class hopper dredge, 408 feet in length, 10,614 gross tons. Most of the work will be performed while the dredge is moored at the Corps of Engineers wharf, which is the vessel's home port, and is located at 7400 Leake Ave, New Orleans, Louisiana 70118. However, it may be necessary for the Contractor to travel to the Dredge at the various work sites to perform emergency repairs as it becomes necessary throughout the year. The period of performance will be for one (1) base year with four (4) subsequent optional years (see Section B), exercisable at the sole discretion of the government. The government reserves the right to use or not use any part of line items proposed on, as well as not to invoke usage of any or all optional years.

1.3 PRE-PROPOSAL SITE VISIT – For proposal purposes, prospective offerors are encouraged to make a site visit prior to solicitation closing date. A site visit aboard the Dredge Wheeler located at the Corps of Engineers, New Orleans District, 7400 Leake Ave, New Orleans LA 70118 is scheduled by appointment. All arrangements for the site visit must be made by calling Hung Quach at (504) 862-1150.

1.4 Parking - Temporary parking passes, shall be issued to the Contractor's vehicles for the duration of the contract. The contractor is subject to all government regulations and requirements regarding the operation of a motor vehicle on a government installation. NOTE: There shall be no parking on the district wharf, except for loading/off-loading of equipment.

1.4.1 Due to space constraints, only a limited number of vehicular passes will be authorized by the District's Safety, Security, and Occupational Health Office. No private vehicles and no over-night parking will be allowed. Posted speed limits will be enforced. The Contractor should consider a mobilization point, for pooling purposes, or possibly bussing employees to the job site. Only previously approved company identified vehicles and pedestrians, possessing company identification will be granted access to this Army Reservation. (NOTE: Pedestrian crossing at either entrance to this reservation is not posted or policed and is therefore considered dangerous.)

1.5 Access to District offices will be authorized for official business purposes, including cafeteria services. Precautions should be taken to protect government facilities from the effects

of greasy or dirty clothing. No roaming of the reservation grounds, buildings, or offices will be allowed.

1.6 DISTRICT SECURITY - Upon contract award, the contractor shall provide a detailed and complete listing of all individuals and vehicular access requirements. This listing must be updated as required by the Security Office.

1.6.1 All Contractor employees (U.S. citizens and non-U.S. citizens) working under this contract (*to include grants, cooperative agreements and task orders*) who require access to Automated Information Systems (AIS), (standalone computers, network computers/systems, e-mail) shall, at a minimum, be designated into an ADP-III position (non-sensitive) in accordance with DoD 5220-22-R, Industrial Security Regulation. The investigative requirements for an ADP-III position are a favorable National Agency Check (NAC), SF-85P, Public Trust Position. The contractor shall have each applicable employee complete a SF-85P and submit to the USACE, New Orleans District, P. O. Box 60267, New Orleans, LA 70160-0267, Security Officer within three (3) working days after award of any contract or task order and shall be submitted prior to the individual being permitted access to an AIS. Contractors that have a commercial or government entity (CAGE) Code and Facility Security Clearance through the Defense Security Service shall process the NACs and forward visit requests/results of NAC to the USACE, New Orleans District, P. O. Box 60267, New Orleans, LA 70160-0267, Security Officer. For those contractors that do not have a CAGE Code or Facility Security Clearance, the USACE, New Orleans District, P. O. Box 60267, New Orleans, LA 70160-0267, Security Office will process the investigation in coordination with the Contractor and contract employees.

1.6.2 In accordance with Engineering Regulation, ER 380-1-18, Section 4, foreign nationals who work on Corps of Engineers' contracts or task orders shall be approved by the HQUSACE Foreign Disclosure Officer or higher before beginning work on the contract/task order. This regulation includes subcontractor employees. (NOTE: exceptions to the above requirement include foreign nationals who perform janitorial and/or ground maintenance services.) The contractor shall submit to the Division/District Contract Office, the names of all foreign nationals proposed for performance under this contract/task order, along with documentation to verify that he/she was legally admitted into the United States and has authority to work and/or go to school in the US. Such documentation may include a US passport, Certificate of US citizenship (INS Form N-560 or N-561), Certificate of Naturalization (INS Form N-550 or N-570), foreign passport with I-551 stamp or attached INS Form I-94 indicating employment authorization, Alien Registration Receipt Card with photograph (INS Form I-151 or I-551), Temporary Resident Card (INS Form I-688), Employment Authorization Card (INS Form I-688A), Reentry Permit (INS Form I-327), Refugee Travel Document (INS Form I-571), Employment Authorization Document issued by the INS which contains a photograph (INS Form I-688B). Classified contracts require the issuance of a DD Form 254 (Department of Defense Contract Security Classification Specification).

1.7 RECEIVING - Deliveries for Contractor required supplies and equipment will be accepted at the US Army Corps of Engineers District Warehouse located at 7400 Leake Ave, New Orleans, LA 70118 or at the field location of the vessel. Prior notification of expected shipment information is required.

1.8 NON-SMOKING AREAS - In conjunction with department of the Army policy, all interior spaces on the Dredge WHEELER have been designated NON-SMOKING AREAS. Smoking will be allowed on exterior decks only, if the ship is not taking on flammable substances (fuel oil, lube oil, etc.).

1.9 CHANGES - No changes will be made to this solicitation or the resulting contract unless it is made, in writing, by the Contracting Officer. Changes made by any other direction will be made at the Contractor's own risk.

C-2. SPECIFIC TASKS

2.1 The contractor must have an in-house, stable skilled work force in its daily operation to provide the services of the craftsmen listed in Section B, to perform inspection and repairs to hull, steel structures, dredging equipment, propulsion system, and auxiliary systems aboard the U.S. Dredge WHEELER.

2.2 Work shall include, but not be limited to, disassembly, reassembly, new fabrication, and repair of dredge pumps, dredge piping, hydraulic piping, hydraulic seals, sluice valves, dredging arms, drag heads, turning glands, sliding trunnions, sliding carriages, service frames, hoisting frames and davits, deck winches, hull fittings, hull structures, crane components, shafting, propulsion, power generators, and ship's auxiliary system components. Work shall be performed on the ship's exterior and interior. Work also shall be performed either on the ship or at the contractor owned shop facility.

2.3 Work shall be authorized by specific task order. In each task order, one or more performance work statement shall be defined by the government, which will utilize the man hours bid on under Section B of this contract. Most of the work will be performed during the WHEELER's wet-dock overhaul period, which is on average during the September through December months every two years. During this period, the contractor shall be responsible to provide adequate manpower to complete the task order within schedule. See Section F for additional requirements. However, other major repairs are also necessary outside of the overhaul period, and they will be issued by specific task order. The length of any repair depends on the specific scope of work and the vessel's availability through-out the year. The contractor must be able to provide enough manpower and equipment to perform various maintenance and repair through-out the year.

2.4 Work Performed by the government - The government reserves the right to perform work on the vessel's systems, while under contract with the Contractor. Any work will be performed as to not delay or interfere with the duties of the Contractor.

C-3. REQUIREMENTS/PERFORMANCE STANDARDS

3.1 REQUIREMENTS

3.1.1 GENERAL - All operation will be performed without delays by personnel who are thoroughly familiar with the types of equipment and work being performed, and who possess

the necessary experience to properly perform maintenance and repairs to marine vessels and equipment on hopper dredge vessels. Any defects in contractor workmanship shall be corrected at no expense to the government. Documentation (resume, training certificates, education, etc.) shall be provided for the qualifications of the Contractor's company and personnel prior to contract award (see par 3.1.2)

3.1.2 QUALIFICATIONS-

3.1.2.1 COMPANY/CONTRACTOR The company/contractor shall have a minimum of five (5) years recent experience in marine repair of the magnitude involved in this Performance Work Statement (PWS). Hopper dredge vessels experience, especially dredge equipment (pumps, dragarms, gate valves, service frames, etc.) of this magnitude is preferred and considered fully relevant and advantageous to this requirement. The company must have a stable, in-house skilled work force in its daily operation, which comprises of the craftsmen listed in sections 3.1.2.2 thru 3.1.2.5.

3.1.2.2 SUPERINTENDENT AND FOREMAN (OUTSIDE AND INSIDE MACHINIST) – superintendent and foremen shall have a minimum of ten (10) years' experience in supervision of journeyman level outside machinists. Foremen shall have at least five (5) years of experience working on dredging equipment on hopper dredge vessels.

3.1.2.3 OUTSIDE AND INSIDE MACHINISTS – outside and inside machinists shall have a minimum of five (5) years' experience at the journeyman level. (Note: outside machinists, preferably, shall have minimum of two (2) years of experience working on dredging equipment on hopper dredge vessels).

3.1.2.4 WELDERS - shall have, as a minimum, qualification to weld up to 3/4-inch-thick A-36 plate, full penetration groove welds, in all positions, using E7018 electrodes, in accordance with AWS and ABS** requirements. Note: **where ABS is denoted 1/2 of the welders under this Contract require certification.

3.1.2.5 PIPEFITTERS – shall have, as a minimum, qualification to weld pipe as follows: Base Material-

Austenitic Stainless Steel Weld Type: Full Penetration Groove
Thickness: .125 to .300 inches
Diameter: 1 inch to 6 inches
Process: SMAW
Positions: All

Pipe fitters shall also be qualified to weld carbon steel base metal under the above conditions.

3.1.3 LABOR HOUR (STRAIGHT TIME or S.T.) - The hourly rates will be paid as quoted using the line items of Section B. For each individual worker, performing eight consecutive hours of work under this contract, excluding lunch, the straight time rate will be paid at each craft's S.T. quoted rate, in accordance with the following:

3.1.3.1 IF THE VESSEL IS AT A LOCATION OTHER THAN HOME PORT:

3.1.3.1.1 The Contractor shall be paid for the time required to travel from the Contractor's shop (not from individual worker's domicile, see C-3.1.9 for shop facility requirement) to the Dredge or dock where they are to be picked up by launch.

3.1.3.1.2 The actual hours worked aboard the ship, excluding lunch. Note: The Contractor shall not be paid for lunch breaks.

3.1.3.1.3 The time required to travel back to the Contractor's shop, if under the eight-hour workday.

3.1.3.1.4 Any standby time on board the ship or launch pick-up location (up to a maximum of 8 hours per day per individual).

3.1.3.2 WHILE AT THE VESSEL'S HOME PORT:

3.1.3.2.1 The Contractor shall **not** be paid for the time required to travel to the Dredge in US Corps of Engineers, New Orleans district wharf, whether from the contractor shop or the individual worker's domicile (see 3.1.5).

3.1.3.2.2 Will be paid for work aboard the vessel or performing authorized work under this contract.

3.1.3.2.3 Shop labor hours in performance of work under this contract for actual work performed inside the Contractor's shop. **NOTE:** Vessel's location (whether at home port or any other location) does not affect terms for shop labor hours.

3.1.4 LABOR HOUR (OVERTIME) - The hourly rates will be paid as quoted using the applicable line item of Section B. For each individual worker, **performing duties under this contract that exceed eight consecutive hours of work on a given day, excluding lunch time, the overtime rate will be paid at each craft's quoted O.T. rate, in accordance with the following:

3.1.4.1 IF THE VESSEL IS AT A LOCATION OTHER THAN HOME PORT:

3.1.4.1.1 The Contractor shall be paid overtime for more than 8 hours in a workday, including travel time that day, per individual who is performing the duties associated with this contract.

3.1.4.1.2 On weekends and holidays.

3.1.4.1.3 Standby time that exceeds 8 hours with a 2-hour maximum per day.

3.1.4.2 WHILE AT THE VESSEL'S HOME PORT:

3.1.4.2.1 The Contractor shall be paid overtime for more than 8 hours in a workday, (excluding travel time, see 3.1.5), while performing duties aboard the vessel or authorized work under this contract.

3.1.4.2.2 On weekends and holidays.

3.1.4.2.3 All overtime shall be authorized by the Contracting Officer, or if so delegated – his/her representative, prior to performing work.

** If applicable, overtime will be paid when the Contractor's employees are responding to an emergency repair on the WHEELER, within the same workday as they were performing duties on another job site. The employee's previously worked hours shall be considered when determining straight time and overtime status. The terms stated above for vessel location remain applicable.

3.1.5 TRANSPORTATION

3.1.5.1 LOCAL - New Orleans District Wharf: While the vessel is moored at the New Orleans District Wharf - home port, this paragraph applies. CLIN 10020 of Section B applies only to the transportation of tools, parts, and equipment to/from the job site while the vessel is at its home port.

3.1.5.1.1 The Contractor will supply a minimum of one (1) - 1-ton pick-up truck. The Contractor's vehicle will remain on site during working hours in a standby mode. Any costs associated with operating the vehicle under this item shall be included in the weekly rental, this includes fuel, maintenance, etc... Weekly use of the vehicle shall not exceed an average of 500 miles. Morning transportation of the vehicle from the Contractor's shop to the job site and subsequent return in the evening is not to be included in the 500 miles. Transportation of workers (mileage and labor) to and from job site, while the vessel is at home port, shall not be paid to the Contractor and should be considered when bidding CLIN's.

3.1.5.1.2 A parking spot will be provided on the reservation for the Contractor's vehicle.

3.1.5.1.3 The driver's time will be charged to CLIN 10011 - LABORER. When the Contractor's vehicle is requested to perform trips connected with performance of the Contract a laborer on site will be used as the vehicle's operator. For example, the contractor may be asked to use his/her vehicle to pick up a part from a local vendor and transport it back to the job site.

3.1.5.2 LOCATION OTHER THAN NEW ORLEANS DISTRICT WHARF: When the vessel is underway, anchored or moored at a wharf other than its home port - New Orleans District Wharf, the following applies:

3.1.5.2.1 CLIN 10021 (mileage) of Section B. When the vessel is underway or anchored out, a government launch will transport the Contractor to and from the vessel. Personnel transportation and labor costs (sedan, pickup or carryall) shall be paid from the contractor's shop to the vessel or the dock where the launch is located and return to the shop. The Contractor will be paid mileage for each vehicle at the rate quoted in the Bidding Schedule. Mileage/labor hours will not be paid from employees lodging, whether commercial or residential, to the job site.

3.1.5.2.2 OVERNIGHT LODGING AND MEALS - When Contractor personnel on a repair job at a location other than the vessel's home port and are required to remain overnight away from their domicile, the government will pay actual expenses for meals and lodging ashore NOT TO EXCEED the government's Joint Travel Regulation limits (check latest website for current allowable rates).

3.1.5.2.2.1 Meals shall not be chargeable to the government when employees are not required to stay away from their domicile.

3.1.5.2.2.2 Contractor employees staying aboard the ship will be charged for meals and lodging at the prices in effect as posted on the Dredge (currently approximately \$18.00 per day). These expenses are in turn chargeable to the government. quote under CLIN 10022.

3.1.6 FACILITIES AND EQUIPMENT - The Contractor must own a suitable shop and equipment, which the contractor operates in its daily work operation, for providing handling, repairs, welding, fabricating, machining new and used components ranging from small parts, such as bushings, pins, small shafts, etc. to large items, such as draghead (approx. weight: 30,000 lbs), turning gland (approx. weight: 22,000 lbs), 43 inches diameter sluice valve (approx. weight: 17,000 lbs), rudder stock (approx. 22 feet long), etc. The contractor-owned facility must possess the followings as a minimum equipment requirement (Documentation shall be provided for the qualifications of the Contractor's facility and equipment prior to contract award (see section M – Evaluation Factors)):

- * Engine lathes or other types of lathes. Lathes must be able to machine shaft(s) up to a maximum length of 30 feet, and up to a maximum diameter of 30 inches.
- * Horizontal and vertical boring mills. Vertical mills must be able to machine or bore up to a diameter of 60 inches.
- * Minimum 50 tons capacity hydraulic press or other equivalent types of press.
- * Bolt threading machine ¼ inch to 2 inches.
- * Hand Screw Machine – 14 inches to 16 ½” inches
- * Automatic Screw Machine
- * Drill press - radial capacity up to 4 feet.
- * Planers – Table, Open Side - Various sizes
- * Plate rollers – Various sizes
- * Automatic band saws – Various sizes.
- * Pipe benders – Various sizes.
- * Portable boring equipment for field repairs – Capacity up to 24-inch diameter.

- * Welding machines with SMAW/MIG/TIG capabilities (ex: Big Blue Miller Diesel welding machines, Teledyne Telarc Diesel welder, etc.).
- * Diesel driven air compressors – Various sizes (ex. Atlas 375 CFM, Sullair 750 CFM).
- * Minimum of two (2) forklifts with 15,000 lbs capacity each (combined capacity of 30,000 lbs).
- * Overhead cranes with lifting capacity up to fifteen (15) tons.
- * Minimum of 600 square feet of free “indoor” storage space.

3.1.6.1 The contractor-owned shop must be completely enclosed and have adequate security to provide protection of government components. It must have sufficient equipment lifting capabilities (overhead cranes, forklifts, etc.) to ensure safe handling of larger, heavy items.

3.1.6.2 Location - The contractor-owned shop must be within a 100 highway miles radius from the New Orleans district so as to facilitate non-disruptive scheduling of government inspection personnel.

3.1.6.3 Pre-Award Shop Inspection – Prior to issuing award the government will determine the offeror with the most potential to receive award and schedule a shop inspection with the offeror. The offeror’s shop must be available at the address provided and be deemed adequate and acceptable (meet the minimum requirement listed above) for the PWS for the government to issue the award. If the shop does not pass inspection, the same process will be followed with the next competitive offer until the government arrives at an award.

3.1.7 ACCIDENT PREVENTION PROGRAM

3.1.7.1 SAFETY REQUIREMENTS - All work performed under this contract shall be in accordance with the requirements of the U.S. Army Corps of Engineers Safety Manual - EM 385-1-1, and other safety requirements specified herein.

3.1.7.2 All contractors working for the Corps of Engineers must have a designated Site Safety and Health Officer who has completed a 10-hour OSHA safety course. This training, which is free to the public at web site <http://www.mvn.usace.army.mil/ss/osha600/s600/>, fulfills the mandatory training requirement.

3.1.7.3 ACCIDENT PREVENTION PROGRAM - After award, but no later than the pre-work conference, four copies of the Accident Prevention Program shall be submitted to the Contracting Officer for review and approval. The program shall be prepared in the following format (see appendices for forms):

3.1.7.3.1 Accident Prevention Plan Checklist – Administrative Section LMN Form 385-7-R

3.1.7.3.2 Accident Prevention Program – Administrative Plan LMN Form 385-43R

3.1.7.3.3 Accident Prevention Program – Hazard Analysis LMN Form 385-6-R

3.1.7.3.4 A copy of company policy statement of accident prevention, and any other guidance statements normally provided new employees.

3.1.7.4 ACCIDENT INVESTIGATIONS AND REPORTING - Refer to EM 385-1-1, Para. 1.D.01. Accidents shall be investigated by the immediate supervisor of the employee(s) involved and reported to the Contracting Officer within one working day after accident occurs. A report of all mishaps occurring on the project shall be submitted to the Contracting Officer within four calendar days following the incident. All data reported must be complete, timely, and accurate. A follow up report shall be submitted when the estimated lost time days differs from actual lost time days.

3.1.7.5 CONTROL OF HAZARDOUS ENERGY (LOCKOUT/TAGOUT) - The Army's lockout/tagout program, as specified in the EM-385-1-1, shall be followed in addition to the requirements in the following paragraph and the Dredge WHEELER's program, attachment A-3.

3.1.7.6 SUPPLEMENT TO EM-385-1-1, PARAGRAPH 12.A.01 - Before an individual performs any servicing, maintenance or construction on a system where the unexpected energizing, start up, or release of kinetic or stored energy could occur and cause injury or damage, the system shall be isolated in accordance with the requirements of this section. In the case where the potential to cause injury or damage does not exist until some point after a system is already in the process of being serviced, maintained or constructed, the system shall be isolated in accordance with the requirements of this section prior to the development of the hazardous potential or as soon as the hazard becomes known, if it could not have been anticipated.

3.1.7.7 DISPOSAL OF WASTE AND DAILY DEBRIS - The Contractor shall at all times keep the work site free from accumulation of waste material caused by the Contractor's employees and performance of work in connection with this Contract. At the completion of the work, unless the task order specifies otherwise, the Contractor shall remove all waste from the work site and leave the immediate vicinity of the work "broom clean". The government will provide adequate disposal receptacles.

3.1.8 INSURANCE - The Contractor shall procure, submit evidence of, and maintain throughout the entire period of performance under this contract, the following minimum level of insurance:

3.1.8.1 Worker's Compensation and Employer's Liability Insurance. The Contractor shall comply with all applicable worker's compensation statutes of the State of Louisiana and shall furnish evidence of the Employer's Liability Insurance in the amount of not less than \$100,000.

3.1.8.2 General Liability Insurance. Bodily injury liability insurance in limits of \$500,000 per occurrence on the comprehensive form of policy.

3.1.8.3 Automobile Liability Insurance. Minimum limits of \$200,000 per person and \$500,000 per occurrence for bodily injury and \$20,000 per occurrence for property damage. All vehicles to be used in the performance of this contract shall be expressly designated in the insurance policy. A copy of the list of such vehicles shall be submitted to the Contracting Officer. If the Contractor acquires a new vehicle for use on this contract after his insurance policy has been obtained, he shall immediately amend his policy to reflect the inclusion of the new vehicle on the policy.

3.1.8.4 The Contractor shall submit all required insurance documentation by no later than seven calendar days after receipt of Notice of Award.

3.1.9 LICENSES AND PERMITS- The Contractor shall, without additional expense to the government, be responsible for obtaining any and all necessary licenses and permits, and for complying with any applicable Federal, State and Municipal Laws, codes and regulations applicable to the performance of the work.

3.2 PERFORMANCE STANDARDS

3.2.1 Performance based deliverables are described in Table 3.2.1, provided below, along with the associated performance standard and the method of monitoring performance. All work performed shall be monitored by the government Inspector on a daily basis. During the wet-dock repair period (per paragraph 2.3) and also during other work through-out the year, the Contractor must submit a brief progress report and orally discuss it with the government every week after commencement of the task order. The government may require progress report on a less or more frequent interval, depending on the complication of work in the task order. The deliverables identified in Table 3.2.1 will be inspected and tested (if applicable) and either approved or rejected by the government. The Contractor shall correct all deficiencies in rejected work at no extra cost to the government unless it is caused by something other than the Contractor's fault.

Table 3.2.1: PWS PERFORMANCE STANDARDS

DESIRED OUTCOMES	PERFORMANCE STANDARD	MONITORING METHOD	INCENTIVE/ DISINCENTIVE
1. After completion of a work item, the final product shall be free of workmanship or parts defects.	All work performed or equipment repaired shall work 100% per manufacturer's standard and accomplish the purposes that they are designed for.	Observation of the Contractor's activities and workmanship in performing the work. Monitor the Contractor-furnished parts; if needed, randomly request the Contractor to provide purchase invoice to ensure the parts used meet manufacturer's standard or drawings' requirements.	Full payment shall be made for 100% compliance with the work statement. Deficiencies will be corrected by Contractor to achieve 100% compliance at no additional cost to the government. Remedies afforded the government under 52.246-4 Inspection of Services clause apply.
2. After starting a task order, the Contractor's ability to mobilize equipment and manpower to work site and complete all work on schedule.	All work performed meet schedule 100%. There is no deficiency in all work performed.	Observation of the Contractor's daily activities. In the wet-dock repair period, monitor the contractor's progress report.	Full payment shall be made for 100% achievement. Deficiencies will be corrected by Contractor to achieve 100% compliance at no additional cost to the government. Remedies afforded the government under 52.246-4 Inspection of Services clause apply.

3. Contractor's machine shop is adequate to handle all repair work or fabricate new parts to meet schedule	All work and parts provided by contractor's machine shop meet schedule 100%. There is no deficiency in parts or work performed.	Random visit on the contractor's machine shop facility while the work going on.	Full payment shall be made for 100% compliance with no deficiency. Deficiencies will be corrected by Contractor to achieve 100% compliance at no additional cost to the government. Remedies afforded the government under 52.246-4 Inspection of Services clause apply.
4. All work performed shall be free of safety violations. All workers shall have proper safety equipment with them all the times.	During the entire term of contract, there is no safety violations, no injuries, or loss of work day.	Observations of the contractor's daily activities. Record any safety violations (if applicable) and discuss with the contractor to prevent them from happening in the future.	Full payment shall be made for 100% compliance with no safety violations. Remedies available to the government under 52.246-4 Inspection of Services clause apply. If violations occur, contractor can be subject to FAR Clause 52.212-4 Termination For Cause as well as any damages or costs incurred as a result.

3.2.2 Clarification - In FAR Clause 52.246-4, INSPECTION OF SERVICES -- FIXED PRICE (FEB 1992), paragraph e, where it states that "If any of the services do not conform with contract requirements, the government may require the Contractor to perform the services again in conformity with contract requirements, at no increase in contract amount", for the purpose of this contract, in addition to at no increase in contract amount, it shall be interpreted to include - at no additional cost to the government.

3.2.3 The Contractor must deliver the desired outcomes for all work listed in the Performance Work Statement according to the performance standards listed in paragraph 3.2.1. Additionally, the work must be fulfilled within the schedule established by individual task orders.

C-4. CONTRACTOR FURNISHED PROPERTY

4.1 CONTRACTOR FURNISHED HAND/POWER TOOLS AND SAFETY EQUIPMENT (include in hourly rates) - The cost for the following items shall be included in the labor rates of items 10001 through 10016 of Section B:

4.1.1 The Contractor shall supply all necessary hand/power tools and equipment to perform the scope and all safety equipment for its workers. Safety equipment shall consist of, but not be limited to, hard hats, safety shoes, shields, goggles, leathers, and gloves for welders and pipe fitters.

4.2 CONTRACTOR FURNISHED MATERIALS/PARTS/CONSUMABLES, SUB-CONTRACTORS, AND SUPPLIES (item 10017, Section B) - Replacement parts and components, supplies, sub-contractors, and materials other than government furnished, may be required for the job. Item 10017, Section B, which lists 1 lot for parts and materials is established by the government for purchase of parts, components, supplies, consumable materials, and subcontractor services (e.g. sandblasting, metal galvanizing) which repairs dictate the necessity of. All purchases and rentals shall be approved by the Contracting Officer in writing or his/her representative if so designated, prior to such action. The process will involve furnishing quote(s) prior to obtaining written approval. **No one other than the Contracting Officer or his/her designated representative, if so designated, has authority to issue purchase approval on government funds under CLIN 10017. The Contractor will be held responsible for costs resulting from unapproved purchases.** Documentation shall be furnished to the Contractor with the names of individual(s) who are authorized to instruct the Contractor to make purchases. All Contractor furnished items purchased shall be new, unused, guaranteed, original equipment, and manufacturer's parts or those which have been approved or recommended for use by the manufacturer of the particular equipment, unless otherwise approved in writing by the government, the government reserves the right to furnish without cost to the Contractor, any repair equipment, parts, accessories, and supplies required to accomplish work. The government reserves the right to view original invoices, to be furnished by the Contractor, on materials purchased under this item from the Contractor's suppliers.

4.2.1 **Examples** of consumable materials/supplies, other than parts, that may be used by the Contractor in connection with performing the scope of work in this Contract, and which the Contractor may be asked to supply under this item are as follows:
Oxygen/Acetylene cylinders (full), welding electrodes, gasket material, pipe, fasteners, hose, abrasive discs, saw blades, steel plate, freight charges, rags, oil absorbent, lube/gear/hydraulic oil, paint, hand cleaner, etc.

4.2.2 The government reserves the right to use all, none, or any portion of the funds allocated under CLIN 10017, Section B.

4.3 CONTRACTOR FURNISHED RENTAL EQUIPMENT - Quote in accordance with the applicable line items (10018, 10019, and 10020) in Section B. NOTE: All other tools and equipment shall be provided by the contractor per section 4.1.

4.4 CONTRACTOR FURNISHED MACHINE SHOP FACILITY - All costs for machine shop facility shall be included in hourly rates of INSIDE MACHINISTS. The minimum requirements for Contractor's machine shop facility are to be in accordance with paragraphs 3.1.6.

C-5. GOVERNMENT FURNISHED PROPERTY AND SERVICES

5.1 GOVERNMENT-FURNISHED DRAWINGS AND PARTS – When a need for inspection or repairing of equipment arises, the government shall issue a task order which may have one or more work items. The government shall write a performance work statement for each work item which will define the work in measurable outcomes. The government shall provide the contractor all available applicable drawings necessary to perform the job. However, in some cases, the government does not possess manufacturer's proprietary drawings (e.g. fabrication, clearance, detailed dimensional and material drawings, etc.). In such cases, the contractor is responsible for accomplishing the performance-based work statement including but not limited to consulting with manufacturers, vendors, or technical experts on related equipment for needed information to perform the job. The government shall not be held responsible if the contractor fails to perform due to lack of information. The government also reserves the right to provide long-lead time or special ordered parts, such as proprietary components, steel castings, special alloy materials, etc. In such cases, the government shall explicitly call out in the work statement the description and quantity of parts furnished by the government.

5.2 Disposal of scrap - The Contractor shall treat salvage, scrap or other government material resulting from performance of the work as government furnished property and shall remain the property of the government. Unless told otherwise by the Contracting Officer, the Contractor shall not remove salvage, scrap, or other government material from the Reservation or government installation.

5.3 GOVERNMENT-FURNISHED SERVICES – The government shall provide only the following:

5.3.1 City water connection (hoses shall be provided by the contractor)

5.3.2 120V electrical outlets (extension cord shall be provided by the contractor)

5.3.3 Trash dumpster for non-hazardous materials.

5.3.4 Crane service.

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-3	Gratuities.	1984-04		
52.203-6	Restrictions on Subcontractor Sales to the Government.	2020-06		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards. (Deviation)	2026-02		
52.204-13	System for Award Management-Maintenance. (Deviation)	2026-02		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation)	2026-02		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters. (Deviation)	2026-02		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation)	2026-02		

52.219-6	Notice of Total Small Business Set-Aside. (Deviation)	2026-02
52.219-8	Utilization of Small Business Concerns. (Deviation)	2026-02
52.219-33	Nonmanufacturer Rule. (Deviation)	2026-02
52.222-35	Equal Opportunity for Veterans. (Deviation)	2026-02
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation)	2026-02
52.222-37	Employment Reports on Veterans. (Deviation)	2026-02
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation)	2026-02
52.222-41	Service Contract Labor Standards. (Deviation)	2026-02
52.222-43	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts). (Deviation)	2026-02
52.222-44	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment. (Deviation)	2026-02
52.222-50	Combating Trafficking in Persons. (Deviation)	2026-02
52.222-54	Employment Eligibility	2026-02

Verification. (Deviation)

52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026. (Deviation)	2026-02
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation)	2026-02
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	2018-10
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	2023-03
52.233-3	Protest after Award. (Deviation)	2026-02
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation)	2026-02

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09		
252.203-7002	Requirement to Inform Employees of Whistleblower	2022-12		

Rights.

252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	2024-05
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01
252.223-7008	Prohibition of Hexavalent Chromium.	2023-01
252.225-7012	Preference for Certain Domestic Commodities.	2022-04
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	2023-01
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	2023-06
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	2023-01
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	2018-12
252.232-7010	Levies on Contract Payments.	2006-12
252.243-7002	Requests for Equitable Adjustment.	2022-12

252.244-7000	Subcontracts for Commercial Products or Commercial Services.	2023-11
252.247-7023	Transportation of Supplies by Sea.	2024-10

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.219-14	Limitations on Subcontracting. (Deviation)	2026-02		

Limitations on Subcontracting (Feb 2026) (Deviation)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) Definition. Similarly situated entity, as used in this clause, means a first-tier subcontractor, including an independent contractor, that-

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) Applicability. This clause applies only to-

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small

business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with sections 19.105, 19.106, 19.107, and 19.108;

(4) Orders expected to exceed the simplified acquisition threshold and that are set aside for small business concerns under multiple-award contracts, as described in 8.4 and 16.5;

(5) Orders, regardless of dollar value, that are set aside in accordance with sections 19.105, 19.106, 19.107, and 19.108 under multiple-award contracts, as described in 8.4 and 16.5; and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) Independent contractors. An independent contractor shall be considered a subcontractor.

(e) By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for-

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be

exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause-

[Contracting Officer check as appropriate.]

[] By the end of the base term of the contract and then by the end of each subsequent option period; or

[] By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.222-42 Statement of Equivalent Rates 2014-05
for Federal Hires.

Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage-Fringe Benefits
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
(End of clause)	

52.222-50 Combating Trafficking in 2026-02 Alternate I 2026-02
Persons. (Deviation) (Alternate I)

Alternate I (Feb 2026) (Deviation). As prescribed in 22.1703-2(a)(2), substitute the following paragraph in place of paragraph (c)(1)(i) of the basic clause:

(c)(1)(i)(A) The United States Government's policy prohibiting trafficking in persons described in paragraph (b) of this clause; and

(B) The following directive(s) or notice(s) applicable to employees performing work at the

contract place(s) of performance as indicated below:

Document Title performance in/at:	Document may be obtained from:	Applies to
--------------------------------------	--------------------------------	------------

_____	_____	_____
_____	_____	_____

[Contracting Officer must insert title of directive/notice; indicate the document is attached or provide source (such as website link) for obtaining document; and, indicate the contract performance location outside the United States to which the document applies.]

Addendum to Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation)	2026-02		
52.222-3	Convict Labor. (Deviation)	2026-02		
52.223-23	Sustainable Products. (Deviation)	2026-02		
52.232-39	Unenforceability of Unauthorized Obligations.	2013-06		
52.240-91	Security Prohibitions and Exclusions. (Deviation)	2026-02		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation)	2026-02		
52.246-4	Inspection of Services-Fixed-Price.	1996-08		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	1991-12		

252.204-7003	Control of Government Personnel Work Product.	1992-04
252.225-7048	Export-Controlled Items.	2013-06
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	2023-01

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.216-7	Allowable Cost and Payment. (Deviation)	2026-02		

Allowable Cost and Payment (Feb 2026) (Deviation)

(a) Invoicing.

(1) The Government will make payments to the Contractor when requested as work progresses, but (except for small business concerns) not more often than once every 2 weeks, in amounts determined to be allowable by the Contracting Officer in accordance with Federal Acquisition Regulation (FAR) subpart 31.2 in effect on the date of this contract and the terms of this contract. The Contractor may submit to an authorized representative of the Contracting Officer, in such form and reasonable detail as the representative may require, an invoice or voucher supported by a statement of the claimed allowable cost for performing this contract.

(2) Contract financing payments are not subject to the interest penalty provisions of the Prompt Payment Act. Interim payments made prior to the final payment under the contract are contract financing payments, except interim payments if this contract contains Alternate I to the clause at 52.232-25.

(3) The designated payment office will make interim payments for contract financing on the ____

[Contracting Officer insert day as prescribed by agency head; if not prescribed, insert "30th"] day after the designated billing office receives a proper payment request. In the event that the Government requires an audit or other review of a specific payment request to ensure compliance with the terms and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date.

(b) Reimbursing costs.

(1) For the purpose of reimbursing allowable costs (except as provided in paragraph (b)(2) of this clause, with respect to pension, deferred profit sharing, and employee stock ownership plan contributions), the term "costs" includes only-

(i) Those recorded costs that, at the time of the request for reimbursement, the Contractor has paid by cash, check, or other form of actual payment for items or services purchased directly for the contract;

(ii) When the Contractor is not delinquent in paying costs of contract performance in the ordinary course of business, costs incurred, but not necessarily paid, for-

(A) Supplies and services purchased directly for the contract and associated financing payments to subcontractors, provided payments determined due will be made-

(1) In accordance with the terms and conditions of a subcontract or invoice; and

(2) Ordinarily within 30 days of the submission of the Contractor's payment request to the Government;

(B) Materials issued from the Contractor's inventory and placed in the production process for use on the contract;

(C) Direct labor;

(D) Direct travel;

(E) Other direct in-house costs; and

(F) Properly allocable and allowable indirect costs, as shown in the records maintained by the Contractor for purposes of obtaining reimbursement under Government contracts; and

(iii) The amount of financing payments that have been paid by cash, check, or other forms of payment to subcontractors.

(2) Accrued costs of Contractor contributions under employee pension plans shall be excluded until actually paid unless-

(i) The Contractor's practice is to make contributions to the retirement fund quarterly or more frequently; and

(ii) The contribution does not remain unpaid 30 days after the end of the applicable quarter or shorter payment period (any contribution remaining unpaid shall be excluded from the Contractor's indirect costs for payment purposes).

(3) Notwithstanding the audit and adjustment of invoices or vouchers under paragraph (g) of this clause, allowable indirect costs under this contract shall be obtained by applying indirect cost rates established in accordance with paragraph (d) of this clause.

(4) Any statements in specifications or other documents incorporated in this contract by reference designating performance of services or furnishing of materials at the Contractor's expense or at no cost to the Government shall be disregarded for purposes of cost-reimbursement under this clause.

(c) Small business concerns. A small business concern may receive more frequent payments than every 2 weeks.

(d) Final indirect cost rates.

(1) Final annual indirect cost rates and the appropriate bases shall be established in accordance with subpart 42.7 of the Federal Acquisition Regulation (FAR) in effect for the period covered by the indirect cost rate proposal.

(2)

(i) The Contractor shall submit an adequate final indirect cost rate proposal to the Contracting Officer (or cognizant Federal agency official) and auditor within the 6-month period following the expiration of each of its fiscal years. Reasonable extensions, for exceptional circumstances only, may be requested in writing by the Contractor and granted in writing by the Contracting Officer. The Contractor shall support its proposal with adequate supporting data.

(ii) The proposed rates shall be based on the Contractor's actual cost experience for that period. The appropriate Government representative and the Contractor shall establish the final indirect cost rates as promptly as practical after receipt of the Contractor's proposal.

(iii) An adequate indirect cost rate proposal shall include the following data unless otherwise specified by the cognizant Federal agency official:

(A) Summary of all claimed indirect expense rates, including pool, base, and calculated indirect rate.

(B) General and Administrative expenses (final indirect cost pool). Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts).

(C) Overhead expenses (final indirect cost pool). Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) for each final indirect cost pool.

(D) Occupancy expenses (intermediate indirect cost pool). Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) and expense reallocation to final indirect cost pools.

(E) Claimed allocation bases, by element of cost, used to distribute indirect costs.

(F) Facilities capital cost of money factors computation.

(G) Reconciliation of books of account (i.e., General Ledger) and claimed direct costs by major cost element.

(H) Schedule of direct costs by contract and subcontract and indirect expense applied at claimed rates, as well as a subsidiary schedule of Government participation percentages in each of the allocation base amounts.

(I) Schedule of cumulative direct and indirect costs claimed and billed by contract and subcontract.

(J) Subcontract information. Listing of subcontracts awarded to companies for which the contractor is the prime or upper-tier contractor (include prime and subcontract numbers; subcontract value and award type; amount claimed during the fiscal year; and the subcontractor name, address, and point of contact information).

(K) Summary of each time-and-materials and labor-hour contract information, including labor categories, labor rates, hours, and amounts; direct materials; other direct costs; and, indirect expense applied at claimed rates.

(L) Reconciliation of total payroll per IRS form 941 to total labor costs distribution.

(M) Listing of decisions/agreements/approvals and description of accounting/organizational changes.

(N) Certificate of final indirect costs (see 52.242-4, Certification of Final Indirect Costs).

(O) Contract closing information for contracts physically completed in this fiscal year (include contract number, period of performance, contract ceiling amounts, contract fee computations, level of effort, and indicate if the contract is ready to close).

(iv) The following supplemental information is not required to determine if a proposal is adequate, but may be required during the audit process:

(A) Comparative analysis of indirect expense pools detailed by account to prior fiscal year and budgetary data.

(B) General organizational information and limitation on allowability of compensation for certain contractor personnel. See 31.205-6(p).

(C) Identification of prime contracts under which the contractor performs as a subcontractor.

(D) Description of accounting system (excludes contractors required to submit a CAS Disclosure Statement or contractors where the description of the accounting system has not changed from the previous year's submission).

(E) Procedures for identifying and excluding unallowable costs from the costs claimed and billed (excludes contractors where the procedures have not changed from the previous year's submission).

(F) Certified financial statements and other financial data (e.g., trial balance, compilation, review, etc.).

(G) Management letter from outside CPAs concerning any internal control weaknesses.

(H) Actions that have been and/or will be implemented to correct the weaknesses described in the management letter from subparagraph (G) of this section.

(I) List of all internal audit reports issued since the last disclosure of internal audit reports to the Government.

(J) Annual internal audit plan of scheduled audits to be performed in the fiscal year when the final indirect cost rate submission is made.

(K) Federal and State income tax returns.

(L) Securities and Exchange Commission 10-K annual report.

(M) Minutes from board of directors meetings.

(N) Listing of delay claims and termination claims submitted which contain costs relating to the subject fiscal year.

(O) Contract briefings, which generally include a synopsis of all pertinent contract provisions, such as: contract type, contract amount, product or service(s) to be provided, contract performance period, rate ceilings, advance approval requirements, pre-contract cost allowability limitations, and billing limitations.

(v) The Contractor shall update the billings on all contracts to reflect the final settled rates and update the schedule of cumulative direct and indirect costs claimed and billed, as required in paragraph (d)(2)(iii)(I) of this section, within 60 days after settlement of final indirect cost rates.

(3) The Contractor and the appropriate Government representative shall execute a written understanding setting forth the final indirect cost rates. The understanding shall specify (i) the agreed-upon final annual indirect cost rates, (ii) the bases to which the rates apply, (iii) the periods for which the rates apply, (iv) any specific indirect cost items treated as direct costs in the settlement, and (v) the affected contract and/or subcontract, identifying any with advance agreements or special terms and the applicable rates. The understanding shall not change any monetary ceiling, contract obligation, or specific cost allowance or disallowance provided for in this contract. The understanding is incorporated into this contract upon execution.

(4) Failure by the parties to agree on a final annual indirect cost rate shall be a dispute within the meaning of the Disputes clause.

(5) Within 120 days (or longer period if approved in writing by the Contracting Officer) after settlement of the final annual indirect cost rates for all years of a physically complete contract, the Contractor shall submit a completion invoice or voucher to reflect the settled amounts and rates. The completion invoice or voucher shall include settled subcontract amounts and rates. The prime contractor is responsible for settling subcontractor amounts and rates included in the completion invoice or voucher and providing status of subcontractor audits to the contracting officer upon request.

(6)

(i) If the Contractor fails to submit a completion invoice or voucher within the time specified in paragraph (d)(5) of this clause, the Contracting Officer may-

(A) Determine the amounts due to the Contractor under the contract; and

(B) Record this determination in a unilateral modification to the contract.

(ii) This determination constitutes the final decision of the Contracting Officer in accordance with the Disputes clause.

(e) Billing rates. Until final annual indirect cost rates are established for any period, the Government shall reimburse the Contractor at billing rates established by the Contracting Officer or by an authorized representative (the cognizant auditor), subject to adjustment when the final rates are established. These billing rates-

(1) Shall be the anticipated final rates; and

(2) May be prospectively or retroactively revised by mutual agreement, at either party's request, to prevent substantial overpayment or underpayment.

(f) Quick-closeout procedures. Quick-closeout procedures are applicable when the conditions in FAR 42.708(a) are satisfied.

(g) Audit. At any time or times before final payment, the Contracting Officer may have the Contractor's invoices or vouchers and statements of cost audited. Any payment may be-

(1) Reduced by amounts found by the Contracting Officer not to constitute allowable costs; or

(2) Adjusted for prior overpayments or underpayments.

(h) Final payment.

(1) Upon approval of a completion invoice or voucher submitted by the Contractor in accordance with paragraph (d)(5) of this clause, and upon the Contractor's compliance with all terms of this contract, the Government shall promptly pay any balance of allowable costs and that part of the fee (if any) not previously paid.

(2) The Contractor shall pay to the Government any refunds, rebates, credits, or other amounts (including interest, if any) accruing to or received by the Contractor or any assignee under this contract, to the extent that those amounts are properly allocable to costs for which the Contractor has been reimbursed by the Government. Reasonable expenses incurred by the Contractor for securing refunds, rebates, credits, or other amounts shall be allowable costs if approved by the Contracting Officer. Before final payment under this contract, the Contractor and each assignee whose assignment is in effect at the time of final payment shall execute and deliver-

(i) An assignment to the Government, in form and substance satisfactory to the Contracting Officer, of refunds, rebates, credits, or other amounts (including interest, if any) properly allocable to costs for which the Contractor has been reimbursed by the Government under this contract; and

(ii) A release discharging the Government, its officers, agents, and employees from all liabilities, obligations, and claims arising out of or under this contract, except-

(A) Specified claims stated in exact amounts, or in estimated amounts when the exact amounts are not known;

(B) Claims (including reasonable incidental expenses) based upon liabilities of the Contractor to third parties arising out of the performance of this contract; provided, that the claims are not known to the Contractor on the date of the execution of the release, and that the Contractor gives notice of the claims in writing to the Contracting Officer within 6 years following the release date or notice of final payment date, whichever is earlier; and

(C) Claims for reimbursement of costs, including reasonable incidental expenses, incurred by the Contractor under the patent clauses of this contract, excluding, however, any expenses arising from the Contractor's indemnification of the Government against patent liability.

(End of clause)

52.216-18

Ordering.

2020-08

Ordering (Aug 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from 30 May 2026 through 29 May 2031.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when-

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either-

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19

Order Limitations.

1995-10

Order Limitations (Oct 1995)

(a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than \$2,500.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) Maximum order. The Contractor is not obligated to honor-

(1) Any order for a single item in excess of the contract ceiling;

(2) Any order for a combination of items in excess of the contract ceiling; or

(3) A series of orders from the same ordering office within three (3) days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within three (3) days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22

Indefinite Quantity. (Deviation)

2026-02

Indefinite Quantity (Feb 2026) (Deviation)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after six (6) months after the expiration date of the contract .

(End of clause)

52.216-24 Limitation of Government Liability. 1984-04

Limitation of Government Liability (Apr 1984)

(a) In performing this contract, the Contractor is not authorized to make expenditures or incur obligations exceeding the contract ceiling dollars.

(b) The maximum amount for which the Government shall be liable if this contract is terminated is 1% of the ordering period value.

(End of clause)

52.217-8 Option to Extend Services. 1999-11

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 calendar days.

(End of clause)

52.217-9 Option to Extend the Term of the 2000-03
Contract.

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed five (5) years.

(End of clause)

Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-7	System for Award Management-Registration. (Deviation)	2026-02		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	2016-10		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	2022-05		

DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7016	Covered Defense Telecommunications Equipment or Services-Representation.	2019-12		

COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (DEC 2019)

(a) Definitions. As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) Representation. The Offeror represents that it [] does, [] does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	2021-05
--------------	--	---------

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS

EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Addendum to Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	2017-01		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation)	2026-02		

5352.201-9101 Ombudsman

As prescribed in [5301.9103 Solicitation Provision and Contract Clause](#), insert the following clause:

OMBUDSMAN (JUL 2023)

(a) An ombudsman has been appointed to hear and facilitate the resolution of concerns from offerors, potential offerors, and others for this acquisition. When requested, the ombudsman will maintain strict confidentiality as to the source of the concern. The existence of the ombudsman does not affect the authority of the program manager, contracting officer, or source selection official. Further, the ombudsman does not participate in the evaluation of proposals, the source selection process, or the adjudication of protests or formal contract disputes. The ombudsman may refer the interested party to another official who can resolve the concern.

(b) Before consulting with an ombudsman, interested parties must first address their concerns, issues, disagreements, and/or recommendations to the contracting officer for resolution. Consulting an ombudsman does not alter or postpone the timelines for any other processes (e.g., agency level bid protests, GAO bid protests, requests for debriefings, employee-employer actions, contests of OMB Circular A-76 competition performance decisions).

(c) If resolution cannot be made by the contracting officer, the interested party may contact the ombudsman, [Insert names, addresses, telephone numbers, facsimile numbers, and e-mail addresses of Center/MAJCOM/FLDCOM/DRU/DAFRCO ombudsman/ombudsmen]. Concerns, issues, disagreements, and recommendations that cannot be resolved at the Center/MAJCOM/FLDCOM/DRU ombudsman level, may be brought by the interested party for further consideration to the Department of the Air Force ombudsman, Associate Deputy Assistant Secretary (ADAS) (Contracting), SAF/AQC, 1060 Air Force Pentagon, Washington DC 20330-1060, phone number (571) 256-2395, facsimile number (571) 256-2431.

(d) The ombudsman has no authority to render a decision that binds the agency.

(e) Do not contact the ombudsman to request copies of the solicitation, verify offer due date, or clarify technical requirements. Such inquiries shall be directed to the contracting officer.

(End of clause)

SECTION L

SECTION L PROPOSAL SUBMISSION

Proposals shall be submitted in three (3) volumes: Volume I, Volume II and Volume III:

1. **Volume I – Technical**: Limited to 100 pages, must be submitted electronically. The dimensions of the paper are 8 ½ x 11 inches. No less than size 12 font shall be used. The spacing can be single-spaced, 1½ spaced or double spaced. Charts, tables or diagrams shall not exceed 11 x 17 inches. Each volume shall be identify. (e.g. 1, 2 or 3, etc.)

Volume 1 shall include the following: Contents.

- a) Offeror experience.
- b) Quality Control
- c) Shop Facility & Equipment
- d) Schedule

a. Offeror Experience. The Offeror shall provide a brief narrative explanation of the Offeror's organization and experience as they relate to the Performance Work Statement. Offeror must submit documentation including resumes of management personnel, supervisors and in- house skilled craftsmen (with supported documents, licenses, certificates, etc.) that provide a clear insight into each employee's ability, training, work history, certifications, number of years' experience applicable to the requirements of the Performance Work Statement.

b. Quality Control. The Offeror shall also include a quality control plan along with organization chart reflecting the Offeror's structure as it relates to performance of this requirement. The plan and flow chart must adequately define the Quality Control organization; the procedures to ensure compliance, to include the management of sub-contractor effort and quality control; and the adequacy of record keeping and reporting.

c. Shop Facility & Equipment. The Offeror shall submit equipment lists demonstrating the requirements in section 3.1.6 in the Performance Work Statement. The Offeror shall provide specified location(s) of its owned facilities to include a machine shop located within 100 highway miles radius of New Orleans district office. Additionally, the Offeror shall provide a point of contact to arrange for Government inspection of the Offeror owned machine shop. f the Offeror does not own a machine shop, the Offeror must submit with its proposal a written agreement with full access to utilize a facility equipped with a machine shop, which meets all requirements listed below and must be located within 100 highway mile radius of the New Orleans district office, to provide the capability, functionality, and adequacy required to perform the specified Performance Work Statement.

d. Schedule. A schedule shall be submitted clearly defining all work tasks, milestones, and deliveries.

2. **Volume II – Past Performance**: Limited to 100 pages, must be submitted electronically. Dimensions of paper are 8 ½ x 11 inches. The spacing can be either single-spaced, 1 ½ spaced or double spaced utilizing no less than a size 12 font. This requirement also applies to all proposed subcontractors/team members/Joint Venture partners.

a. Offeror shall submit the past performance questionnaire (located as exhibit to this solicitation addendum) to references of same or similar services required of this solicitation. Offeror shall instruct its references to send past performance questionnaire responses via email to Angela C. Day at Angela.C.Day@usace.army.mil so as to arrive as soon as possible before the date specified for receipt of proposals on the SF 1449. **Questionnaires must be received by the contracting office no later than the date and time stated on the SF1449 for receipt of proposals.**

b. Offeror shall submit its past performance projects, citing the contracting agency, contract number, name and phone number of the contact, dollar amount, type of contract, period of performance and brief description of performance of related functions as defined in this Performance Work Statement, on all commercial and Government contracts. The same applies to each subcontractor/team member/Joint Venture partner. Offeror shall emphasize the recency and relevancy of work performed in the past to Dredge Ship Maintenance Services or any of the unique performance requirements defined in the solicitation's performance work statement. There shall be a minimum of three (3) and a maximum of ten (10) references submitted. Projects submitted shall be completed within the last five (5) years.

c. Offeror and each subcontractor/team member/Joint Venture partner shall also submit copies of all its past performance evaluation reports issued for the past five (5) years of performance on all relevant commercial and Government contracts.

d. Offeror shall submit a narrative explanation of each contract for which references are provided which demonstrates the extent of involvement, including Performance Work Statement, complexity and objectives achieved. Offeror shall emphasize the recency and relevancy of work performed in the past to Dredge Ship Maintenance Services or any of the unique performance requirements defined in the solicitation's performance work statement.

e. For proprietary reasons, the Offeror must advise the Government on how subcontractor past performance information will be handled. If the subcontractor is

authorizing the Offeror authority to communicate directly with the Government on issues relating to the subcontractor's past performance, a written authorization from the subcontractor must be provided to the

Government. The Offeror must provide a written copy of authorization from its subcontractors for the Offeror to discuss subcontractor's past performance with the Government.

f. On one submitted sheet, the Offeror may describe any quality awards or certifications received within the past five years that indicate the Offeror possesses a high-quality process for providing the services required.

g. If an Offeror does not have any past performance information to submit as the entity under which the proposal is being submitted, then the Offeror may submit past performance data for similar work under which the Offeror's key personnel has performed. If the Offeror claims that there is no past performance, then the status must be identified to the Contracting Officer so as to arrive as soon as possible before the date and time identified on the SF 1449 for receipt of proposals.

3. **Volume III – Price and Proposal Documentation**: The price proposal is limited to 100 pages, and must be submitted electronically. The dimensions of the paper are 8 ½ x 11 inches. Typing is permitted with spacing being single-spaced, 1 ½ spaced or double-spaced. Document should be signed.

a. SF 1449 and Pricing Schedule Addendum: The Offeror shall insert its proposed price for each CLIN or sub CLIN in the spaces provided in SF 1449 Pricing Schedule Addendum (Section B). The SF 1449 shall be appropriately completed and signed. If an Offeror proposes to absorb a portion of the costs or provides other benefits to the Government that affects price, the Offeror must identify and explain the impact on price. The Offeror should confirm that the direct labor rates bid conform to the minimum applicable DOL wage determinations and/or collective bargaining agreements. If specific labor classifications are not listed for any class of service employee required in the performance of the Performance Work Statement, the Offeror should follow the instructions located at the end of each wage determination for the Request for Authorization of Additional Classification and Wage Rate (Standard Form 1444). The information contained in the price/contract proposal must be consistent with the information provided in other proposal volumes.

b. Complete all required representations and certifications. Note: Offeror must be registered in System for Award Management (www.sam.gov) to submit and receive a Government contract.

c. Amendment(s) Acknowledgment – Include fully executed document of solicitation amendments, as applicable.

PROPOSAL DOCUMENTS

a. **Format.** The submission shall be clearly indexed and logically assembled. Each volume shall be clearly identified and shall begin at the top of a page. All pages of each volume shall be appropriately numbered and identified by the complete company name, date, and RFP number in the header and/or footer. A Table of Contents should be created.

b. **Document Submittals.** All of the proposal documents shall be electronically submitted as separate uploads as required, in their native format, i.e. doc, xls, ppt, etc. Zip disks are not permitted. Documents shall be in read-only format, using PDF files. All price breakdown information to aid in the cost/price evaluation shall be submitted in Microsoft Office Excel Read/Write format and viewable in Microsoft Excel Workbook.

****Please note – Self extracting exe files are not acceptable.**

c. **Content Requirement.** All information shall be confined to the appropriate file listing. The Offeror shall confine submissions to essential information sufficient to permit a complete and accurate evaluation of each proposal. Each file shall contain a Table of Contents. Proprietary information shall be clearly marked.

A. DISCUSSIONS

1. GENERAL INFORMATION.

Although the Government reserves the right to award without discussions, if it is determined that discussions are necessary, the Government may make a competitive range determination (limited to the highest-rated proposals for efficiency purposes and for purposes of holding discussions after the initial evaluation of proposals). Should discussions take place, all Offerors in the competitive range will be allowed a minimum of TEN (10) calendar days to submit Final Proposal Revisions.

2. DISCUSSION SCHEDULING.

If discussions are conducted, the Contracting Officer will schedule the discussion sessions, and each Offeror will be notified of the time and place at least THREE (3) business days prior to their discussion session. Appropriate security clearances should be provided by the Offerors in sufficient time to process the requests. The Contracting Officer will provide additional instructions with the notification.

SECTION M

BASIS FOR AWARD (Section M)

The Government will select the offer that represent the best value to the Government by utilizing the trade-off process described at FAR Part 15.101-1 and agency supplements. This process permits tradeoffs between cost/price and technical merit/quality and allows the Government to accept other than the lowest priced offer. The Source Selection Authority's decision will be based on a comparative assessment of proposals against all source selection criteria in the solicitation. The objective of the solicitation is to select one Offeror for award with the best combination of cost and technical capability to the Government, or the "Best Value", for the subject contract.

The following terminology is used to describe the relative importance of each non-cost factor:

- (1) **SIGNIFICANTLY MORE IMPORTANT.** This factor is of greater value than other factors. It is approximately twice as much as the next valued factor.
- (2) **SIGNIFICANTLY LESS IMPORTANT.** This factor is approximately one-half (1/2) the value of the factor rated ahead of it.
- (3) **APPROXIMATELY EQUAL.** The value is nearly the same as another factor; any difference is slight and unimportant.

The Government will evaluate each of the two (2) non-cost factors and rate the proposals. The non-cost factors are approximately equal in importance. **All non-cost evaluation factors (i.e. technical experience and past performance), when combined are approximately equal to cost or price.**

B. FACTORS TO BE EVALUATED

Non-Cost

1. Technical Experience

- a) **Company experience.**
- b) **Quality control**
- c) **Shop facility & Equipment**
- d) **Schedule**

2. Past Performance

Cost/Price

3. Price

C. EVALUATION APPROACH

All proposals shall be subject to evaluation by the Source Selection Team (SST).

1. The overarching evaluation approach for all factors is as follows:

a. Adequacy of Response. The proposal will be evaluated to determine whether the Offeror's methods and approach have adequately and completely considered, defined, and satisfied the requirements specified in the Request for Proposal (RFP). The proposal will be evaluated to determine the extent to which each requirement has been addressed in the proposal in accordance with the proposal submission section of the RFP.

NON-COST EVALUATION FACTORS & SUBMITTAL REQUIREMENTS

a. Technical Experience (Components of Technical Experience are equally important and are listed below).

- i. Offeror Experience
- ii. Quality Control
- iii. Shop Facility & Equipment
- iv. Schedule

The Offeror's technical proposal will be evaluated through the comparison of the proposal to the solicitation requirements. A rating will be assigned based upon the evaluation criteria below.

This technical rating reflects the degree to which an Offeror's proposal meets or does not meet the minimum performance or capability requirements through an assessment of the strengths, weaknesses, deficiencies, and risks of the proposal.

Table 2. Combined Technical/Risk Ratings		
Rating	Definition	
BLUE	Outstanding	Proposal meets requirements and indicates an exceptional understanding of the requirements. Strengths far outweigh any weaknesses. Risk of unsuccessful performance is very low.
PURPLE	Good	Proposal meets requirements and indicates a thorough understanding of the requirements. Proposal contains strengths which outweigh any weaknesses. Risk of unsuccessful performance is low.
GREEN	Acceptable	Proposal meets requirements and indicates an adequate understanding of the requirements. Strengths and weaknesses are offsetting or will have little or no impact on contract performance. Risk of unsuccessful performance is no worse than moderate
YELLOW	Marginal	Proposal does not clearly meets requirements and has not demonstrated an adequate understanding of the requirements. The proposal has one or more weaknesses which are not offset by strengths. Risk of unsuccessful performance is high.
RED	Unacceptable	Proposal does not meet requirements and contains one or more deficiencies. Proposal is unawardable.

1. Offeror Experience:

Provide a brief overview of Offeror's experience and provide individual resumes of its management personnel, supervisors, in-house skilled craftsmen. The proposal shall include resumes (with supported documents, licenses, certificates, etc.) that provide a clear insight into each employee's ability, training, work history, certifications, number of years' experience applicable to the requirements of the Performance Work Statement.

2. Quality Control:

Provide a clear understanding of the Offeror's Quality Control program and adequacy of the system of record keeping and reporting. Additionally, the proposal shall have a clear company flowchart to adequately manage the contract and quality control, including effective relationships of direct accountability for the Performance Work Statement.

3. Shop Facility & Equipment:

Demonstrates understanding of the solicitation by proposing company owned shop facility and equipment listed below to successfully perform the Performance Work Statement. However, if the Offeror does not own a machine shop, the Offeror must submit with its proposal a written agreement with full access to utilize a facility equipped with a machine shop, which meets all requirements listed below and must be located within 100 highway mile radius of the New Orleans district office, to provide the capability, functionality, and adequacy required to perform the specified Performance Work Statement.

Additionally, the Government must make a pre-award visit to the required machine shop and determine, by inspection, that the shop is adequate and acceptable. An adequate and acceptable machine shop is one that meets the following requirements:

a. Possesses the capacity, tooling, and security to work on equipment, components, and parts of the size, weight, complexity, and material compositions as those that will be worked under the Performance Work Statement (PWS), in accordance with sections 3.1.6 of the PWS. Physical inspection, conducted by the Government, will be used to determine that the shop is adequate as to these requirements. At a minimum, the machine shop will have the following list of equipment (reproduced here from section 3.1.6):

- * Engine lathes or other types of lathe. Lathes must be able to machine shaft(s) up to a maximum length of 30 feet, and up to a maximum diameter of 30 inches.
- * Horizontal and vertical boring mills. Vertical mills must be able to machine or bore up to a diameter of 60 inches.
- * Minimum 50 tons capacity hydraulic press or other equivalent types of press.
- * Bolt threading machine ¼ inch to 2 inches.
- * Hand Screw Machine – 14 inches to 16 ½” inches
- * Automatic Screw Machine
- * Drill press - radial capacity up to 4 feet.
- * Planers – Table, Open Side - Various sizes
- * Plate rollers – Various sizes
- * Automatic band saws – Various sizes.
- * Pipe benders – Various sizes.
- * Portable boring equipment for field repairs – Capacity up to 24 inches diameter.
- * Welding machines with SMAW/MIG/TIG capabilities (ex: Big Blue Miller Diesel welding machines, Teledyne Telarc Diesel welder, etc.).
- * Diesel driven air compressors – Various sizes (ex. Atlas 375 CFM, Sullair 750 CFM).
- * Minimum of two (2) fork lifts with 15,000 lbs. capacity each (combined capacity of 30,000 lbs.).
- * Overhead cranes with lifting capacity up to fifteen (15) tons.
- * Minimum of 600 square feet of free “indoor” storage space.

b. Is adequate if staffed with trades possessing experienced to perform the PWS on equipment, parts, and components that will be worked under this PWS as defined in sections 3.1.2 and 3.1.6. A review of the resumes and other documentation required by sections 3.1.1 and 3.1.2, which determine that inside machinists and supervisors meet the requirements of those sections is necessary for this requirement to be deemed adequate.

c. Is acceptable if located within 100 highway miles radius from the Corps of Engineers, New Orleans district. Furthermore, the shop must possess the means to load and unload equipment, parts, and components transported to the machine shop in accordance with section 3.1.6. Government inspection will determine that the shop is acceptable in regards to this requirement.

4. Schedule:

Demonstrate an understanding of the solicitation by showing Offeror’s ability to plan appropriate number of hours required for each task order and execute time frame.

b. Past Performance Proposal (The first component listed (i) is the most important with ii through vi being of equal importance).

- i. Projects performed on the Dredge Wheeler or similar hopper dredges.
- ii. Number of past projects with references included.
- iii. Record of performance as it relates to budget and schedule.
- iv. Conformance to specifications and standards.
- v. Safety and accident prevention.
- vi. Commitment to customer satisfaction.

The Offeror's Past Performance will be evaluated through the accomplishment of a confidence assessment rating based on assessing past performance.

1. This factor identifies and reviews relevant present and past performance, and then makes an overall assessment of the Government's confidence that the Offeror will successfully perform this contract. The Government may utilize information from sources within and outside the Government and is not limited only to the information provided by the Offeror. Documented results from Past Performance Questionnaires, interviews, CPARS, CCASS, and other sources form the support and basis for this assessment.

2. In evaluating past performance, the Government will focus on the Offeror's performance record as it is relevant to all requirements of this solicitation. The Government will consider the relevancy, recency, and extent of the past performance, and the size and complexity of the past performance relative to this solicitation's requirements. More recent and relevant performance will have a greater impact on the performance confidence assessment than a less recent or relevant effort. A strong record of relevant past performance may be considered more advantageous to the Government than a "Neutral/Unknown Confidence" rating. Likewise, a more relevant favorable past performance record may receive a higher confidence rating than a less relevant record of favorable past performance. In the case of an Offeror without a record of relevant past performance or for whom information on past performance is not available, the Offeror may receive a neutral rating on past performance.

3. Relevant Past Performance is that performance that the Offeror has had with contracts for the same or similar items as this solicitation. Factors to be considered for relevancy include contract type, size, and complexity of the Performance Work Statement. Offerors are cautioned to take extreme care in selecting projects for review that are both relevant and accurately reflect the Offeror's past performance capabilities.

The tables below outline the evaluation criteria:

Past Performance Relevancy Ratings	
Rating	Definition
Very relevant	Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.
Not relevant	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

Performance Confidence Assessments	
Rating	Description
Substantial Confidence	Based on the Offeror's recent/relevant performance record, the Government has a <u>high</u> expectation that the Offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the Offeror's recent/relevant performance record, the Government has a <u>reasonable</u> expectation that the Offeror will successfully perform the required effort.
Limited Confidence	Based on the Offeror's recent/relevant performance record, the Government has a <u>low</u> expectation that the Offeror will successfully perform the required effort.
No Confidence	Based on the Offeror's recent/relevant performance record, the Government has <u>no expectation</u> that the Offeror will successfully perform the required effort.
Unknown Confidence (Neutral)	No recent/relevant performance record is available or the Offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned.

4. Relevant past performance of a parent or affiliate will be evaluated on the same basis as relevant past performance of an individual Offeror, provided that sufficient information is supplied to establish the parent or affiliate's role in the proposed work as well as the resources available for such work. An Offeror relying on the past performance record of a parent or affiliate will not be penalized for that fact. However, such Offeror's proposal must demonstrate

there is a reasonable basis for such reliance; otherwise there will be no basis for crediting the Offeror with the past performance of the parent or affiliate.

5. If an Offeror is proposing as a Joint Venture, the Offeror may provide past performance information for each party in the Joint Venture. The Joint Venture Offeror must include a copy of its Joint Venture Agreement. The Joint Venture Agreement shall include information which identifies the responsibilities of each party under the JV Agreement as it relates to the proposed work under this RFP. The JV Agreement shall demonstrate the relationship between the parties to the JV Agreement and identify the authority to bind each party of the Joint Venture. (Small Business Joint Ventures must have its own DUNS/TIN, and be registered inSAM).

6. If an Offeror is proposing under a Contractor Team Arrangement, the Offeror may provide past performance information performed by the Offeror and/or the Offeror's teaming partners and/or members under the Contractor Team Arrangement. The Offeror proposing under a Contractor Team Arrangement must include a copy of its binding Teaming Agreement. The Teaming Agreement shall include information which identifies the responsibilities of each partner and/or member under the Teaming Agreement as it relates to the proposed work under the solicitation. The Teaming Agreement shall demonstrate the relationship between the parties under the Contractor Team Arrangement and identify the authority to bind the teaming partners and/or members. The past performance of the teaming partner and/or members will be evaluated only for the elements of work that the teaming partner and/or member has been identified in the Teaming Agreement to perform under this solicitation.

c. Price Factor:

The price submitted in response to this solicitation will not be rated but will be subjectively evaluated for reasonableness by the Source Selection Authority (SSA). In the event, during the course of the analysis, the SSA has reason to question the reasonableness of a price proposal, or has reason to believe there are materially unbalanced contract line items within a price proposal, the SSA may conduct such additional reasonable analysis as it requires in order to complete a thorough price analysis. Because the evaluation of the price proposal will represent a portion of the total evaluation, it is possible that an Offeror might not be selected because of an unbalanced or unreasonable price proposal.

"REGISTER OF WAGE DETERMINATIONS UNDER THE SERVICE CONTRACT ACT By direction of the Secretary of Labor		U.S. DEPARTMENT OF LABOR EMPLOYMENT STANDARDS ADMINISTRATION WAGE AND HOUR DIVISION WASHINGTON D.C. 20210
Daniel W. Simms Director		Wage Determination No.: 2015-5189 Revision No.: 32 Date Of Last Revision: 12/03/2025
Division of Wage Determinations		

State: Louisiana

Area: Louisiana Parishes of Jefferson, Orleans, Plaquemines, Saint John The Baptist, St Bernard, St Charles

****Fringe Benefits Required Follow the Occupational Listing****

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		17.51
01012 - Accounting Clerk II		19.66
01013 - Accounting Clerk III		21.99
01020 - Administrative Assistant		26.73
01035 - Court Reporter		33.28
01041 - Customer Service Representative I		14.88
01042 - Customer Service Representative II		16.24
01043 - Customer Service Representative III		18.23
01051 - Data Entry Operator I		16.29
01052 - Data Entry Operator II		17.78
01060 - Dispatcher, Motor Vehicle		21.44
01070 - Document Preparation Clerk		17.50
01090 - Duplicating Machine Operator		17.50
01111 - General Clerk I		14.35
01112 - General Clerk II		15.66
01113 - General Clerk III		17.58
01120 - Housing Referral Assistant		23.90
01141 - Messenger Courier		14.68
01191 - Order Clerk I		15.97
01192 - Order Clerk II		17.43
01261 - Personnel Assistant (Employment) I		17.95
01262 - Personnel Assistant (Employment) II		20.08
01263 - Personnel Assistant (Employment) III		22.38
01270 - Production Control Clerk		29.87
01290 - Rental Clerk		15.05
01300 - Scheduler, Maintenance		19.17
01311 - Secretary I		19.17
01312 - Secretary II		21.44
01313 - Secretary III		23.90
01320 - Service Order Dispatcher		19.17
01410 - Supply Technician		26.73
01420 - Survey Worker		17.85
01460 - Switchboard Operator/Receptionist		16.50
01531 - Travel Clerk I		19.66
01532 - Travel Clerk II		20.93
01533 - Travel Clerk III		22.54
01611 - Word Processor I		16.44
01612 - Word Processor II		18.45
01613 - Word Processor III		20.64
05000 - Automotive Service Occupations		
05005 - Automobile Body Repairer, Fiberglass		25.84

05010 - Automotive Electrician	22.07
05040 - Automotive Glass Installer	20.50
05070 - Automotive Worker	20.50
05110 - Mobile Equipment Servicer	17.42
05130 - Motor Equipment Metal Mechanic	23.62
05160 - Motor Equipment Metal Worker	20.50
05190 - Motor Vehicle Mechanic	23.62
05220 - Motor Vehicle Mechanic Helper	15.85
05250 - Motor Vehicle Upholstery Worker	18.96
05280 - Motor Vehicle Wrecker	20.50
05310 - Painter, Automotive	22.07
05340 - Radiator Repair Specialist	20.50
05370 - Tire Repairer	17.53
05400 - Transmission Repair Specialist	23.62
07000 - Food Preparation And Service Occupations	
07010 - Baker	14.70
07041 - Cook I	14.43
07042 - Cook II	16.98
07070 - Dishwasher	12.74
07130 - Food Service Worker	11.61
07210 - Meat Cutter	17.94
07260 - Waiter/Waitress	10.69
09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	21.97
09040 - Furniture Handler	13.42
09080 - Furniture Refinisher	21.97
09090 - Furniture Refinisher Helper	16.05
09110 - Furniture Repairer, Minor	18.88
09130 - Upholsterer	21.97
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	13.82
11060 - Elevator Operator	14.00
11090 - Gardener	21.63
11122 - Housekeeping Aide	14.00
11150 - Janitor	14.00
11210 - Laborer, Grounds Maintenance	15.87
11240 - Maid or Houseman	13.30
11260 - Pruner	13.95
11270 - Tractor Operator	19.68
11330 - Trail Maintenance Worker	15.87
11360 - Window Cleaner	15.92
12000 - Health Occupations	
12010 - Ambulance Driver	21.29
12011 - Breath Alcohol Technician	25.37
12012 - Certified Occupational Therapist Assistant	32.08
12015 - Certified Physical Therapist Assistant	30.11
12020 - Dental Assistant	19.32
12025 - Dental Hygienist	40.11
12030 - EKG Technician	31.18
12035 - Electroneurodiagnostic Technologist	31.18
12040 - Emergency Medical Technician	21.29
12071 - Licensed Practical Nurse I	22.68
12072 - Licensed Practical Nurse II	25.37
12073 - Licensed Practical Nurse III	28.27
12100 - Medical Assistant	18.16
12130 - Medical Laboratory Technician	31.19
12160 - Medical Record Clerk	21.77
12190 - Medical Record Technician	24.35
12195 - Medical Transcriptionist	18.56
12210 - Nuclear Medicine Technologist	42.26
12221 - Nursing Assistant I	13.28
12222 - Nursing Assistant II	14.95
12223 - Nursing Assistant III	16.31
12224 - Nursing Assistant IV	18.31
12235 - Optical Dispenser	17.29

12236 - Optical Technician	20.91
12250 - Pharmacy Technician	18.80
12280 - Phlebotomist	17.78
12305 - Radiologic Technologist	32.08
12311 - Registered Nurse I	26.62
12312 - Registered Nurse II	33.59
12313 - Registered Nurse II, Specialist	33.59
12314 - Registered Nurse III	40.65
12315 - Registered Nurse III, Anesthetist	40.65
12316 - Registered Nurse IV	48.72
12317 - Scheduler (Drug and Alcohol Testing)	31.42
12320 - Substance Abuse Treatment Counselor	19.72
13000 - Information And Arts Occupations	
13011 - Exhibits Specialist I	22.61
13012 - Exhibits Specialist II	28.02
13013 - Exhibits Specialist III	34.27
13041 - Illustrator I	19.74
13042 - Illustrator II	24.45
13043 - Illustrator III	29.91
13047 - Librarian	30.70
13050 - Library Aide/Clerk	16.58
13054 - Library Information Technology Systems Administrator	27.72
13058 - Library Technician	19.24
13061 - Media Specialist I	20.00
13062 - Media Specialist II	22.37
13063 - Media Specialist III	24.95
13071 - Photographer I	20.06
13072 - Photographer II	22.44
13073 - Photographer III	27.79
13074 - Photographer IV	33.99
13075 - Photographer V	41.12
13090 - Technical Order Library Clerk	20.35
13110 - Video Teleconference Technician	23.97
14000 - Information Technology Occupations	
14041 - Computer Operator I	18.95
14042 - Computer Operator II	21.20
14043 - Computer Operator III	23.64
14044 - Computer Operator IV	26.27
14045 - Computer Operator V	29.09
14071 - Computer Programmer I	(see 1) 21.79
14072 - Computer Programmer II	(see 1) 25.53
14073 - Computer Programmer III	(see 1)
14074 - Computer Programmer IV	(see 1)
14101 - Computer Systems Analyst I	(see 1)
14102 - Computer Systems Analyst II	(see 1)
14103 - Computer Systems Analyst III	(see 1)
14150 - Peripheral Equipment Operator	18.95
14160 - Personal Computer Support Technician	26.27
14170 - System Support Specialist	32.06
15000 - Instructional Occupations	
15010 - Aircrew Training Devices Instructor (Non-Rated)	32.29
15020 - Aircrew Training Devices Instructor (Rated)	39.07
15030 - Air Crew Training Devices Instructor (Pilot)	46.84
15050 - Computer Based Training Specialist / Instructor	32.29
15060 - Educational Technologist	32.11
15070 - Flight Instructor (Pilot)	46.84
15080 - Graphic Artist	23.35
15085 - Maintenance Test Pilot, Fixed, Jet/Prop	46.84
15086 - Maintenance Test Pilot, Rotary Wing	46.84
15088 - Non-Maintenance Test/Co-Pilot	46.84
15090 - Technical Instructor	24.66
15095 - Technical Instructor/Course Developer	30.15
15110 - Test Proctor	19.90
15120 - Tutor	19.90

16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations	
16010 - Assembler	15.04
16030 - Counter Attendant	15.04
16040 - Dry Cleaner	17.20
16070 - Finisher, Flatwork, Machine	15.04
16090 - Presser, Hand	15.04
16110 - Presser, Machine, Drycleaning	15.04
16130 - Presser, Machine, Shirts	15.04
16160 - Presser, Machine, Wearing Apparel, Laundry	15.04
16190 - Sewing Machine Operator	17.92
16220 - Tailor	18.64
16250 - Washer, Machine	15.76
19000 - Machine Tool Operation And Repair Occupations	
19010 - Machine-Tool Operator (Tool Room)	27.01
19040 - Tool And Die Maker	34.58
21000 - Materials Handling And Packing Occupations	
21020 - Forklift Operator	22.85
21030 - Material Coordinator	30.35
21040 - Material Expediter	30.35
21050 - Material Handling Laborer	16.95
21071 - Order Filler	16.27
21080 - Production Line Worker (Food Processing)	22.85
21110 - Shipping Packer	18.05
21130 - Shipping/Receiving Clerk	18.05
21140 - Store Worker I	11.86
21150 - Stock Clerk	17.57
21210 - Tools And Parts Attendant	22.85
21410 - Warehouse Specialist	22.85
23000 - Mechanics And Maintenance And Repair Occupations	
23010 - Aerospace Structural Welder	35.17
23019 - Aircraft Logs and Records Technician	26.51
23021 - Aircraft Mechanic I	33.01
23022 - Aircraft Mechanic II	35.17
23023 - Aircraft Mechanic III	37.31
23040 - Aircraft Mechanic Helper	22.17
23050 - Aircraft, Painter	30.28
23060 - Aircraft Servicer	26.51
23070 - Aircraft Survival Flight Equipment Technician	30.28
23080 - Aircraft Worker	28.64
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I	28.64
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II	33.01
23110 - Appliance Mechanic	27.01
23120 - Bicycle Repairer	21.32
23125 - Cable Splicer	37.64
23130 - Carpenter, Maintenance	24.58
23140 - Carpet Layer	25.09
23160 - Electrician, Maintenance	29.25
23181 - Electronics Technician Maintenance I	35.36
23182 - Electronics Technician Maintenance II	38.06
23183 - Electronics Technician Maintenance III	40.75
23260 - Fabric Worker	23.20
23290 - Fire Alarm System Mechanic	24.73
23310 - Fire Extinguisher Repairer	21.32
23311 - Fuel Distribution System Mechanic	31.92
23312 - Fuel Distribution System Operator	23.54
23370 - General Maintenance Worker	20.22
23380 - Ground Support Equipment Mechanic	33.01
23381 - Ground Support Equipment Servicer	26.51
23382 - Ground Support Equipment Worker	28.64
23391 - Gunsmith I	21.32
23392 - Gunsmith II	25.09
23393 - Gunsmith III	28.91
23410 - Heating, Ventilation And Air-Conditioning	27.78

Mechanic	
23411 - Heating, Ventilation And Air Contidioning	29.60
Mechanic (Research Facility)	
23430 - Heavy Equipment Mechanic	29.21
23440 - Heavy Equipment Operator	25.07
23460 - Instrument Mechanic	38.28
23465 - Laboratory/Shelter Mechanic	27.01
23470 - Laborer	16.95
23510 - Locksmith	25.30
23530 - Machinery Maintenance Mechanic	30.52
23550 - Machinist, Maintenance	29.60
23580 - Maintenance Trades Helper	18.29
23591 - Metrology Technician I	38.28
23592 - Metrology Technician II	40.78
23593 - Metrology Technician III	43.28
23640 - Millwright	33.16
23710 - Office Appliance Repairer	23.06
23760 - Painter, Maintenance	21.34
23790 - Pipefitter, Maintenance	30.93
23810 - Plumber, Maintenance	28.90
23820 - Pneudraulic Systems Mechanic	28.91
23850 - Rigger	28.43
23870 - Scale Mechanic	25.09
23890 - Sheet-Metal Worker, Maintenance	27.25
23910 - Small Engine Mechanic	22.89
23931 - Telecommunications Mechanic I	38.56
23932 - Telecommunications Mechanic II	41.09
23950 - Telephone Lineman	23.69
23960 - Welder, Combination, Maintenance	29.13
23965 - Well Driller	28.91
23970 - Woodcraft Worker	28.91
23980 - Woodworker	21.32
24000 - Personal Needs Occupations	
24550 - Case Manager	16.81
24570 - Child Care Attendant	11.36
24580 - Child Care Center Clerk	14.16
24610 - Chore Aide	10.88
24620 - Family Readiness And Support Services	16.81
Coordinator	
24630 - Homemaker	16.81
25000 - Plant And System Operations Occupations	
25010 - Boiler Tender	24.78
25040 - Sewage Plant Operator	22.15
25070 - Stationary Engineer	24.78
25190 - Ventilation Equipment Tender	16.63
25210 - Water Treatment Plant Operator	22.15
27000 - Protective Service Occupations	
27004 - Alarm Monitor	19.87
27007 - Baggage Inspector	15.51
27008 - Corrections Officer	24.50
27010 - Court Security Officer	20.40
27030 - Detection Dog Handler	17.35
27040 - Detention Officer	24.50
27070 - Firefighter	17.56
27101 - Guard I	15.51
27102 - Guard II	17.35
27131 - Police Officer I	23.58
27132 - Police Officer II	26.21
28000 - Recreation Occupations	
28041 - Carnival Equipment Operator	17.22
28042 - Carnival Equipment Repairer	18.92
28043 - Carnival Worker	12.21
28210 - Gate Attendant/Gate Tender	17.34
28310 - Lifeguard	12.31
28350 - Park Attendant (Aide)	19.39

28510 - Recreation Aide/Health Facility Attendant	14.16
28515 - Recreation Specialist	24.02
28630 - Sports Official	15.44
28690 - Swimming Pool Operator	23.00
29000 - Stevedoring/Longshoremen Occupational Services	
29010 - Blocker And Bracer	28.48
29020 - Hatch Tender	28.48
29030 - Line Handler	28.48
29041 - Stevedore I	26.34
29042 - Stevedore II	30.65
30000 - Technical Occupations	
30010 - Air Traffic Control Specialist, Center (HFO) (see 2)	46.07
30011 - Air Traffic Control Specialist, Station (HFO) (see 2)	31.77
30012 - Air Traffic Control Specialist, Terminal (HFO) (see 2)	34.99
30021 - Archeological Technician I	23.75
30022 - Archeological Technician II	26.58
30023 - Archeological Technician III	32.88
30030 - Cartographic Technician	32.93
30040 - Civil Engineering Technician	30.61
30051 - Cryogenic Technician I	36.42
30052 - Cryogenic Technician II	40.21
30061 - Drafter/CAD Operator I	23.75
30062 - Drafter/CAD Operator II	26.58
30063 - Drafter/CAD Operator III	29.63
30064 - Drafter/CAD Operator IV	36.45
30081 - Engineering Technician I	17.39
30082 - Engineering Technician II	19.52
30083 - Engineering Technician III	21.84
30084 - Engineering Technician IV	27.05
30085 - Engineering Technician V	33.08
30086 - Engineering Technician VI	40.02
30090 - Environmental Technician	27.75
30095 - Evidence Control Specialist	32.88
30210 - Laboratory Technician	35.49
30221 - Latent Fingerprint Technician I	31.01
30222 - Latent Fingerprint Technician II	34.27
30240 - Mathematical Technician	33.92
30361 - Paralegal/Legal Assistant I	22.44
30362 - Paralegal/Legal Assistant II	27.80
30363 - Paralegal/Legal Assistant III	33.99
30364 - Paralegal/Legal Assistant IV	41.13
30375 - Petroleum Supply Specialist	40.21
30390 - Photo-Optics Technician	32.93
30395 - Radiation Control Technician	40.21
30461 - Technical Writer I	25.72
30462 - Technical Writer II	31.47
30463 - Technical Writer III	38.07
30491 - Unexploded Ordnance (UXO) Technician I	29.28
30492 - Unexploded Ordnance (UXO) Technician II	35.43
30493 - Unexploded Ordnance (UXO) Technician III	42.46
30494 - Unexploded (UXO) Safety Escort	29.28
30495 - Unexploded (UXO) Sweep Personnel	29.28
30501 - Weather Forecaster I	36.42
30502 - Weather Forecaster II	44.30
30620 - Weather Observer, Combined Upper Air Or Surface Programs (see 2)	29.63
30621 - Weather Observer, Senior (see 2)	32.88
31000 - Transportation/Mobile Equipment Operation Occupations	
31010 - Airplane Pilot	35.43
31020 - Bus Aide	15.56
31030 - Bus Driver	23.08
31043 - Driver Courier	17.75
31260 - Parking and Lot Attendant	11.55
31290 - Shuttle Bus Driver	20.32
31310 - Taxi Driver	14.85

31361 - Truckdriver, Light	19.50
31362 - Truckdriver, Medium	21.23
31363 - Truckdriver, Heavy	25.00
31364 - Truckdriver, Tractor-Trailer	25.00
99000 - Miscellaneous Occupations	
99020 - Cabin Safety Specialist	17.27
99030 - Cashier	12.83
99050 - Desk Clerk	14.20
99095 - Embalmer	29.28
99130 - Flight Follower	29.28
99251 - Laboratory Animal Caretaker I	16.64
99252 - Laboratory Animal Caretaker II	18.28
99260 - Marketing Analyst	29.47
99310 - Mortician	29.28
99410 - Pest Controller	21.98
99510 - Photofinishing Worker	15.39
99710 - Recycling Laborer	20.33
99711 - Recycling Specialist	25.21
99730 - Refuse Collector	17.88
99810 - Sales Clerk	14.35
99820 - School Crossing Guard	14.93
99830 - Survey Party Chief	27.58
99831 - Surveying Aide	20.37
99832 - Surveying Technician	25.06
99840 - Vending Machine Attendant	18.61
99841 - Vending Machine Repairer	24.07
99842 - Vending Machine Repairer Helper	18.61

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Note: Executive Order 13658 generally applies to contracts subject to the Service Contract Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.55 per hour, up to 40 hours per week, or \$222.00 per week or \$962.00 per month

HEALTH & WELFARE EO 13706: \$5.09 per hour, up to 40 hours per week, or \$203.60 per week, or \$882.27 per month*

*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor, 3 weeks after 8 years, and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (See 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least \$27.63 per hour (or at least \$684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered

overtime work).

**** HAZARDOUS PAY DIFFERENTIAL ****

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder.

All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

**** UNIFORM ALLOWANCE ****

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of "wash and wear" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the ""Service Contract Act Directory of Occupations"", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) ****

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage

determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.
- 3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).
- 4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.
- 5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.
- 6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the "Service Contract Act Directory of Occupations" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."

APPENDICES

APPENDIX A

LIST OF ATTACHMENTS

DESCRIPTION

Required Tooling

Accident Prevention Administrative Plan

Accident Prevention Plan Checklist

Activity Hazard Analysis (AHA)

Safe Management Forms Instruction

Safe Clearance Log

Safe Clearance Request Form ER 385-1-31

Statement of Equivalent Rates For Federal Hires (SCA)

LIST OF CONTRACTOR SUPPLIED HAND AND POWER TOOLS/EQUIPMENT OUTSIDE MACHINISTS, WELDERS, ETC. (MINIMUM REQUIREMENTS)

HAND TOOLS (minimum quantity of 1 or as specified):

- 1 inch drive socket set, wrench size to 2 ¾ inches (1 inch drive) with ratchets.
- Metric sockets to 41 mm (3/4 inch drive).
- Extensions – ¼ inch to 1 inch drive to 12 inches length.
- Hex bit sets to 1 inch, 20 mm; American and Metric, respectively.
- Open end and Box end wrenches to 2 ½ inches.
- 5-tons chain fall. Minimum of 2 on site.
- Striking wrenches to 2 ¾ inches.
- Pipe wrenches to 36 inches.
- Tube cutter (through 1 1/8 inch O.D.).
- Torque wrenches: through 3000 in-lbs; through 2000 ft-lbs.
- Sledge hammer to 12 lbs.
- C-clamps to 12 inches.
- Jaw pullers: to 10 tons, 12 inches spread; 2 way and 3 way.
- Torque multiplier, 15:1 gear ratio.
- Measuring instruments: micrometer to 12 inches, .001 graduation; depth mic.; machinist rules; master feeler gauge set, straight edge; thread gauges; dial indicator.
- Tap and die (UNC): American to 1 ¼ inches, and metric to 24 mm.
- Manual hydraulic pump and ram set with press adaptor – to 20 tons.
- Portable filter caddy or barrel pump with filter (10 micron).
- Welding and Oxy./Acetylene Burning Equipment: Welding lead – minimum of 200 feet. Oxy/Acetylene regulator, 200 feet of green and red hose with fittings, cutting torch to 1/16-4 inch with rose bud adaptor, cylinder trucks (for contractor furnished gases, see consumable/materials section). In addition, each welder/pipe fitter shall have chipping hammer, wire brush, spark lighter, chalk, and all needed safety equipment – hood/goggles, leathers, gloves, respirators, CO₂ portable fire extinguisher, etc.
- Miscellaneous (required per worker): Pliers, vice grips, crescent wrenches, allen wrench set, needle nose pliers, retaining ring pliers, cutting pliers, sheet metal snips, locking pliers (welding clamp, C-clamp), punches, chisels, ball peen hammer, dead blow hammer, retrieving tool, inspection mirrors, gasket scrapers, putty knives, files, scribes, tape measure, screw drivers (phillip and flat head), flash light, 1/2 inch drive socket set, open end/box end wrench set.

POWER TOOLS / EQUIPMENT (minimum quantity of 1 or as specified):

- Pneumatic impact wrench and sockets, 1/4 inch to 1 inch drives, wrench size to 2 ¾ inches (1 inch drive).
- Pneumatic grinders.
- Heavy duty variable speed electric hand drill.
- Electric or pneumatic driven portable hydraulic unit with a 2.5 gpm minimum oil flow capacity with tank or 55 gal. drum adapter.
- Electrical extension cord, minimum of 200 feet.
- Diesel engine driven welding machine with the following capabilities: Shielded Metal Arc Welding (stick), Air Carbon arc cutting and gouging (Bid on this Equipment item under applicable item in Section B).
- Diesel engine driven air compressor with the following capabilities: 150 psig, 20 HP, 60 CFM continuous flow compressor (Bid on this Equipment item under applicable item in Section B).

ADMINISTRATIVE PLAN
(EM385-1-1 (Nov 03) Pages 3,4 & App A)

1. Contractor	2. Contractor Name & No.		3. Date
4. Project Superintendent	5. Shift/day	5a. Hours/shift	5b. Maximum employees/shift
6a. TRAINING – List subjects to be discussed with employees in safety indoctrination.			
6b. TRAINING – List mandatory training and certifications which are applicable to this project (e.g., explosive actuated tools, confined space entry, crane operator, diver, vehicle operator, etc.)			
6c. List major equipment, i.e., cranes, dozers, vessels, etc.			
6d. List special equipment, i.e., radioactive equipment, etc.			
7. Responsibility & Authority – Who is responsible for safety? Project: Corporate: Line of Authority?			
8. Who will conduct safety inspection?	8a. How		8b. When
9a. Is safety & health policy attached?	9b. Is safety program attached?	9c. Day & hour weekly safety meeting	
10. How will subcontractor & supplies be controlled?	11. What are their safety responsibilities?		
12. Who will report accidents, exposure data?			

[illegible]

On a separate sheet submit your proposed layout of temporary buildings and facilities (including subcontractors) and traffic patterns, including access roads, haul roads, R.R.s. utilities, etc.

The _____ will pursue a positive program of training, inspections
(Company)
and hazard control throughout the term of this contract. Mr./Ms.

_____ has the responsibility and authority for enforcing them.

Contractor's Signature

Date

U.S.Army Corps of Engineers Safety Inspection Checklist Abbreviated Accident Prevention Plan				Date of Inspection		
Location (Plant or Facility)			Contract Number			
Contractor Name			Project Name			
Inspector Name (Print)			Inspector Signature			
<i>This checklist serves as a guide only. It does not replace or eliminate the need to comply with the requirements set forth in Engineering Manual 385-1-1, Safety and Health Requirements Manual, dated XX September 2014. The references included in this checklist correspond to the applicable sections of EM 385-1-1.</i>						
<i>If service, supply and R&D contracts with limited scopes are awarded, the contractor may submit an abbreviated Accident Prevention Plan. This APP shall address the following areas at a minimum. If other areas of the EM 385-1-1 are pertinent to the contract, the contractor must assure these areas are addressed as well.</i>						
Item Description			Yes	No	N/A	Remarks (Any NO or N/A Item)
1. Signature sheet						
a. Includes the name, signature, and title of the Plan Preparer (Qualmed person, i.e. corporate safety staff person, QC)			☐	☐	☐	
b. Includes the name, signature, and title of the Plan Approver {e.g. owner, company president, regional vice president}			☐	☐	☐	
c. Includes the name(s), signature(s), and title(s) for Plan Concurrence (provide concurrence of other applicable corporate and project personnel(contractor))			☐	☐	☐	
2. Background information						
a. Includes the Contractor Name.			☐	☐	☐	
b. Includes the Contract Number.			☐	☐	☐	
c. Includes the Project Name.			☐	☐	☐	
d. Includes the Brief Project Description.			☐	☐	☐	
e. Includes the Location of the Project {map}.			☐	☐	☐	
f. Includes a means to evaluate the work being done (see AHA requirements in 01.A.13) and associated hazards involved.			☐	☐	☐	
g. Addresses the identified hazards involved and the control measures to be taken.			☐	☐	☐	
3. Statement of Safety and Health Policy detailing their commitment to providing a safe and healthful workplace for all employees.			☐	☐	☐	
4. Responsibilities and Lines of Authorities						
a. Includes the identification and job responsibilities of personnel responsible for safety - at both corporate and project level - including their resumes.			☐	☐	☐	
b. Includes the lines of authority.			☐	☐	☐	
5. Training- new hire SOH orientation training at the time of initial hire of each new employee and any periodic retraining/recertification requirements			☐	☐	☐	
6. Procedures for job site inspections - assignment of responsibilities and frequency			☐	☐	☐	

U.S.Army Corps of Engineers Safety Inspection Checklist Abbreviated Accident Prevention Plan				Date of Inspection
Item Description	Yes	No	N/A	Remarks (Any NO or N/A item)
7.Procedures for reporting man-hours worked and reporting and investigating any accidents as soon as possible but not more than 24 hours afterwards to the Contracting Officer/Representative (CO/COR)	☐	☐	☐	
8.Emergency Planning. Employees working alone shall be provided an effective means of emergency communication. This may be cellular phone, two-way radio or other acceptable means. The selected means of communication must be readily available and must be in working condition.	☐	☐	☐	
9.Drinking Water provisions, toilet and washing facilities.	☐	☐	☐	
10.First Aid and CPR training (at least two employees on each shift shall be qualified/certified to administer first aid and CPR) and provision of first aid kit (types/size).	☐	☐	☐	
11.Personal Protective Equipment				
a. Work Clothing - Minimum Requirements. Employees to wear clothing suitable for the weather; minimum requirements for work shall be short-sleeve shirt, long pants (excessively long or baggy pants are prohibited) and leather work shoes. If AHA determines safety-toed (or other protective) footwear is necessary (i.e., mowing, weed eating, chain saw use, etc), they shall be worn.	☐	☐	☐	
b.Eye and Face Protection. Eye and face protection shall be worn as determined by an analysis of the operations being performed HOWEVER, all involved in chain saw use, chipping,stump grinding, pruning operations, grass mowing, weed eating and blowing operations shall be provided safety eyewear (Z87.1) as a minimum.	☐	☐	☐	
c. Hearing Protection. Hearing protection must be worn by all exposed to high noise activities {includes grass mowing/trimming, chainsaw operations, tree chipping, stump grinding and pruning)	☐	☐	☐	
d.Head Protection. Hard hats shall comply with ANSI Z89.1 and shall be worn by all workers when a head hazard exists. At a minimum, hard hats shall be worn when performing activities identified in {b) above	☐	☐	☐	
e.High Visibility Apparel shall comply with ANSI/ISEA 107, Class 2 requirements at a minimum and shall be worn by all workers exposed to vehicular or equipment traffic.	☐	☐	☐	
f.Protective Leg chaps shall be worn by all chainsaw operators.	☐	☐	☐	
g. Gloves of the proper type shall be worn by persons involved in activities that expose the hands to cuts,abrasions, punctures, burns and chemicalirritants.	☐	☐	☐	
h. If work is being performed around water and drowning is a hazard, PFD's must be provided and worn as appropriate.	☐	☐	☐	
12.Machine Guards and safety devices. Lawn maintenance equipment must have appropriate guards and safety devices in place and operational.	☐	☐	☐	

U.S.Army Corps of Engineers Safety Inspection Checklist Abbreviated Accident Prevention Plan				Date of Inspection
---	--	--	--	--------------------

Item Description	Yes	No	N/A	Remarks (Any NO or N/A Item)
13. Hazardous Substances. When any hazardous substances are procured, used, stored or disposed, a hazard communication program must be in effect and MSDSs shall be available at the worksite. Employees shall have received training in hazardous substances being used. When the eyes or body of any person may be exposed to corrosives, irritants or toxic chemicals, suitable facilities for quick drenching or flushing of the eyes and body shall be provided within 10 seconds of the worksite.	☐	☐	☐	
14. Traffic control shall be accomplished in accordance with DORs MUTCD.	☐	☐	☐	
15. Control of Hazardous Energy (Lockout/Tagout). Before an employee performs any servicing or maintenance on any equipment where the unexpected energizing or startup of the equipment could occur, procedures must be in place to ensure adequate control of	☐	☐	☐	
16. Driving, working on (i.e., working with equipment/mowers) while on slopes, working from/in boats/skiffs, etc shall also be considered and dealt with accordingly.	☐	☐	☐	

Other Remarks

Form A-02
U.S. Army Corps of Engineers
Accident Prevention Plan Checklist

Date of Inspection

Location (Plant or Facility)	Contract Number
Contractor Name	Project Name
Inspector Name (Print)	Inspector Signature

This checklist serves as a guide only, it does not replace or eliminate the need to comply with the requirements set forth in Engineering Manual 385-1-1, Safety and Health Requirements Manual, dated XX Sept 2014. The references included in this checklist correspond to the applicable sections of EM 385-1-1.

Item Description	Yes	No	N/A	Remarks (Any NO or N/A item)
1. Signature sheet				
a. Includes the name, signature, and title of the Plan Preparer (<i>Qualified person, i.e. corporate safety staff person, QC</i>)	☐	☐	☐	
b. Includes the name, signature, and title of the Plan Approver (<i>e.g. owner, company president, regional vice president</i>) (HTRW activities require approval of a Certified Industrial Hygienist, a Certified Safety Professional may approve the plan for operations involving UST removal where contaminants are known to be petroleum, oils, or lubricants).	☐	☐	☐	
c. Includes the name(s), signature(s), and title(s) for Plan Concurrence (provide concurrence of other applicable corporate and project personnel (contractor)) (<i>e.g. Chief of Operations, Corporate Chief of Safety, Corporate Industrial Hygienist, project manager or superintendent, project safety professional, project QC.</i>)	☐	☐	☐	
2. Background information				
a. Includes the Contractor Name.	☐	☐	☐	
b. Includes the Contract Number.	☐	☐	☐	
c. Includes the Project Name.	☐	☐	☐	
d. Includes the Brief Project Description.	☐	☐	☐	
e. Includes the Location of the Project (map).	☐	☐	☐	
f. Includes the Contractor Accident Experience (<i>Copy of OSHA 300</i>)	☐	☐	☐	
g. Includes the Listing of Phases of Work and Hazardous Activities Requiring an Activity Hazard Analyses (AHA).	☐	☐	☐	
3. Statement of Safety and Health Policy. Includes a copy of the corporate safety policy. (<i>In addition to the corporate policy statement, a copy of the corporate safety program may provide a portion of the information required by the accident prevention</i>)	☐	☐	☐	
4. Responsibilities and Lines of Authorities				
a. Includes the identification and job responsibilities of personnel responsible for safety - at both corporate and project level – including their resumes.	☐	☐	☐	
b. Includes the lines of authority.	☐	☐	☐	

Form A-02 U.S. Army Corps of Engineers Accident Prevention Plan Checklist (cont'd)				Date of Inspection
Item Description	Yes	No	N/A	Remarks (Any NO or N/A item)
5. Training				
a. Includes the list of subjects to be discussed with employees at safety indoctrination.	☐	☐	☐	
b. Includes the list of mandatory training and certifications applicable to this project (e.g., <i>explosive actuated tools, confined space entry, crane operator, diver, vehicle operator, HAZWOPER training and certification, PPE</i>) and any requirements for periodic retraining / recertification.	☐	☐	☐	
c. Includes the identity requirements for emergency response training.	☐	☐	☐	
d. Includes the outline requirements (<i>who attends, when given, who will conduct, etc.</i>) for supervisory and employee safety	☐	☐	☐	
6. Safety and Health Inspections				
a. Includes the name(s) of individual(s) responsible for conducting safety inspections. (e.g., <i>PM, safety professional, QC, supervisors, employees</i>)	☐	☐	☐	
b. Includes proof of inspector's training / qualifications.	☐	☐	☐	
c. Indicates when inspections will be conducted.	☐	☐	☐	
d. Furnished sample forms upon which inspections will be recorded.	☐	☐	☐	
e. Indicates deficiency tracking system and follow-up procedures.	☐	☐	☐	
f. Includes the names of competent and / or qualified person(s) and proof of competency / qualification to meet specific OSHA competent / qualified person(s) requirements.	☐	☐	☐	
g. Includes any external inspections / certifications which may be required. (e.g., <i>US Coast Guard</i>)	☐	☐	☐	
7. Safety and Health Expectations, Incentive Programs, and Compliance				
a. Includes the company's written safety program goals, objectives, and accident experience goals.	☐	☐	☐	
b. Includes a brief description of the company's safety incentive programs (<i>if any</i>).	☐	☐	☐	
c. Includes the policies and procedures regarding noncompliance with safety requirements (to include disciplinary actions for violation of safety requirements).	☐	☐	☐	
d. Includes the written company procedures for holding managers and supervisors accountable for safety.	☐	☐	☐	
8. Mishap Reporting				
a. The plan identifies how, when, and who shall complete the Exposure data (man-hours worked).	☐	☐	☐	
b. The plan identifies how, when, and who shall complete mishap investigations, reports, and logs.	☐	☐	☐	
c. The plan identifies how, when, and who shall make immediate notification of major mishaps.	☐	☐	☐	

Form A-02 U.S. Army Corps of Engineers Accident Prevention Plan Checklist (cont'd)				Date of Inspection
<i>Based on a risk assessment of contracted activities and on mandatory OSHA compliance programs, the Contractor shall address all applicable occupational risks and compliance plans. Using the EM 385-1-1 as a guide, plans may include but not be limited to:</i>				
Item Description	Yes	No	N/A	Remarks (Any NO or N/A item)
9. Plans (Programs, Procedures) required by the Safety Manual				
a. Fatigue Management Plan (01.A.20)	☐	☐	☐	
b. Emergency response plans:	☐	☐	☐	
(1) Procedures & Test (01.E.01)	☐	☐	☐	
(2) Spill Plans (01.E.01, 06.A.02)	☐	☐	☐	
(3) Fire Fighting Plan (01.E.01; 19.A)	☐	☐	☐	
(4) Posting of Emergency Telephone Numbers (01.E.05)	☐	☐	☐	
(5) Man overboard/abandon ship (19.A.04)	☐	☐	☐	
(6) Medical Support. Outline on-site medical support and off-site medical arrangements including rescue and medical duties for those employees who are to perform them, and the name(s) of on-site Contractor personnel trained in first aid and CPR. A minimum of two employees shall be certified in CPR and first-aid per shift/site (Section 03.A; 03.D)	☐	☐	☐	
c. Plan for prevention of alcohol and drug abuse (01.C.02)	☐	☐	☐	
d. Site Sanitation Plan (Section 02.B)	☐	☐	☐	
e. Medical Support Plan, (03.A.01; 03.A.06; 03.D)	☐	☐	☐	
f. Bloodborne Pathogen Plan (03.A.05)	☐	☐	☐	
g. Exposure Control Plan (03.A.05)	☐	☐	☐	
h. Site Layout Plan (04.A)	☐	☐	☐	
i. Access/Haul road Plan (04.B)	☐	☐	☐	
j. Hearing Conservation Program (05.C)	☐	☐	☐	
k. Respiratory Protection Plan (05.G)	☐	☐	☐	
l. Health Hazard Control Program (06.A)	☐	☐	☐	
m. Process Safety Management Plan (06.B.04)	☐	☐	☐	
n. Lead Abatement Plan (06.C & Specs)	☐	☐	☐	
o. Asbestos Abatement Plan (06.C & Specs)	☐	☐	☐	
p. Radiation Safety Program (06.F)	☐	☐	☐	
q. Abrasive Blasting Plan (06.I)	☐	☐	☐	
r. Heat/Cold Stress Monitoring Plan (06.J)	☐	☐	☐	
s. Indoor Air Quality Management Plan (06.L)	☐	☐	☐	
t. Mole Remediation Plan (06.L.04)	☐	☐	☐	
u. Chromium (VI) Exposure Evaluation (06.M)	☐	☐	☐	
v. Crystalline Silica Assessment (06.N)	☐	☐	☐	
w. Lighting Evaluation (07.A)	☐	☐	☐	
x. Lighting Plan for Night Operations (07.A.09)	☐	☐	☐	

Form A-02 U.S. Army Corps of Engineers Accident Prevention Plan Checklist (cont'd)				Date of Inspection
<i>Based on a risk assessment of contracted activities and on mandatory OSHA compliance programs, the Contractor shall address all applicable occupational risks and compliance plans. Using the EM 385-1-1 as a guide, plans may include but not be limited to:</i>				
Item Description	Yes	No	N/A	Remarks (Any NO or N/A item)
9. Plans (Programs, Procedures) continued.				
y. Traffic Control Plan (08.C.05)	☐	☐	☐	
z. Fire Prevention Plan (09.A.01)	☐	☐	☐	
aa. Wild Land Fire Management Plan (09.L)	☐	☐	☐	
bb. Arc Flash Hazard Analysis (11.B)	☐	☐	☐	
cc. Assured Equipment Grounding Control Program (AEGCP), (11.D.05, App D)	☐	☐	☐	
dd. Hazardous Energy Control Plan, (12.A.01)	☐	☐	☐	
ee. Standard Pre-Lift Plan (LHE) (16.A.03, 16.L.15)	☐	☐	☐	
ff. Critical Lift Plan – LHE (16.H)	☐	☐	☐	
gg. Naval Architectural Analysis (16.L)	☐	☐	☐	
hh. Contingency Plan for Severe Weather (19.A.03)	☐	☐	☐	
ii. Man Overboard/Abandon Ship (19.A.04)	☐	☐	☐	
jj. Float Plan (19.F.04)	☐	☐	☐	
kk. Fall Protection Program, (21.D);	☐	☐	☐	
ll. Demolition/Renovation Plan (to include engineering survey), (23.A.02)	☐	☐	☐	
mm. Rope Access Program, (24.H.02)	☐	☐	☐	
nn. Excavation/Trenching Plan, (25.A.01)	☐	☐	☐	
oo. Underground construction fire prevention and protection Plan, (26.D.01)	☐	☐	☐	
pp. Compressed Air Plan, (26.I.01)	☐	☐	☐	
qq. Formwork and Shoring Erection and Removal plan, (27.C)	☐	☐	☐	
rr. PreCast Concrete Plan, (27.D)	☐	☐	☐	
ss Lift. slab plans, (27.E)	☐	☐	☐	
tt. Masonry Bracing Plan, (27.F.01)	☐	☐	☐	
uu. Steel Erection Plan, (28.B)	☐	☐	☐	
vv. Explosives Safety Site Plan (ESSP) (29.A)	☐	☐	☐	
ww. Blasting Plan, (29.A; 26.J)	☐	☐	☐	
xx. Underwater Dive Operations Plan, (30.A.14, 16,)	☐	☐	☐	
yy. Tree Felling/Maintenance Program, (31.A)	☐	☐	☐	
zz. Aircraft/Airfield Construction Safety & Phasing Plan, (32.A.02)	☐	☐	☐	
aaa. Site Safety and Health Plan (HTRW), (33.B)	☐	☐	☐	
bbb. Confined Space Entry Program, (34.A.06, 07)	☐	☐	☐	
10. Risk Management Processes. Detailed project-specific hazards shall be identified and controls provided via Activity Hazard	☐	☐	☐	

Other Remarks:

ACTIVITY HAZARDS ANALYSIS

Print Form

Overall Risk Assessment Code (RAC)
(Use highest code)

Date: _____ Project: _____

Activity: _____

Activity Location: _____

Prepared By: _____

Risk Assessment Code Matrix

E = Extremely High Risk
H = High Risk
M = Moderate Risk
L = Low Risk

		Probability				
		Frequent	Likely	Occasional	Seldom	Unlikely
Severity	Catastrophic	E	E	H	H	M
	Critical	E	H	H	M	L
	Marginal	H	M	M	L	L
	Negligible	M	L	L	L	L

Add Identified Hazards

	JOB STEPS	HAZARDS	ACTIONS TO ELIMINATE OR MINIMIZE HAZARDS	RAC
X				
X				

Add Items

	EQUIPMENT	TRAINING	INSPECTION
X			
X			
X			
X			

Involved Personnel:

Reset Form

ACTIVITY HAZARDS ANALYSIS

Acceptance Authority (digital signature):

HAZARDOUS ENERGY CONTROL PROGRAM, US DREDGE WHEELER

GENERAL GUIDELINES:

"Before personnel perform any servicing or maintenance on a system where the unexpected energizing, start up, or release of kinetic or stored energy could occur and cause injury or damage, the system shall be isolated in accordance with the procedure..." of regulation ER 385-1-31.

Locks and Tags will be placed on circuit breakers, or other appropriate Devices, to isolate and identify hazardous energy sources.

A SAFE CLEARANCE LOG will be maintained in the Engine Control Room by the Engineer-on-Watch. The logbook will have a lock/tag issue sheet and SAFE CLEARANCE REQUEST FORMS.

Contractor personnel performing work at the Corps-operated facilities shall comply with any existing hazardous energy control procedures of the facility and the hazardous energy control requirements of EM 385-1-1.

IMPLEMENTATION PROCEDURES

A. The Engineer-on Watch is the **ISSUEING PERSONNEL** for all Lockouts and Tagouts.

1. The Engineer-on Watch shall review requests for safe clearance.

a. The upper portion of the SAFE CLEARANCE REQUEST FORM must be filled in. Written procedures to isolate and de-energize the equipment are not required if the following conditions are met:

- i. The equipment has a single energy source, which can be readily identified and isolated.
- ii. The isolation and locking out of that energy source will completely de-energize and deactivate the equipment.

b. The lower portion of the SAFE CLEARANCE REQUEST FORM, or procedures, must be filled in if either of the following conditions exist:

- i. A piece of equipment is powered by more than primary energy source.
- ii. A piece of equipment, or related system, could contain more than or store residual energies that might endanger employees.

c. The Engineer-on Watch must ensure the bottom portion of the form...names, dates, and times are filled in.

2. Upon verifying that the proposed hazardous energy control procedures meet the requirements of this regulation and the hazardous energy control program, and that procedures are adequate for the work to be performed, the issuing individual can approve the Safe Clearance Request Form. (ENG 1927-R).

3. The Engineer-on Watch will enter the form in the SAFE CLEARANCE LOG book.

NOTE: Requests for, and clearance of, SAFE CLEARANCE REQUEST FORMS can only be made by the AUTHORIZED INDIVIDUAL with one exception. The ISSUING INDIVIDUAL can clear the SAFE CLEARANCE REQUEST FORM if the AUTHORIZED INDIVIDUAL is not available.

4. When the AUTHORIZED INDIVIDUAL wants to release the Safe Clearance, the word "RELEASED" shall be written in the LOCKED/TAGOUT LOG.

NOTE: The Master, Chief Engineer, Chief Mate, Engineers, Electrician, Dredge Control Officer, Mate of Watch, Integrated Systems Mechanic, and Boatswain are authorized personnel.

a. The AUTHORIZED INDIVIDUALS shall:

- i. Make requests for Safe CLEARANCE FORMS.
- ii. Install all of the energy isolation devices.
- iii. Assume responsibility for the system covered by the safe clearance until it is released to the ISSUING INDIVIDUAL.

SAFE CLEARANCE LOG

[illegible]

SAFE CLEARANCE REQUEST FORM

LOCATION	CORPS OF ENGINEERS SAFE CLEARANCE REQUEST FORM ER 385-1-31		DATE
			TIME
CLEARANCE NO.		CLEARANCE COMPLETED BY	
SYSTEM AND HAZARDS TO BE CLEARED			
PURPOSE OF CLEARANCE			
CLEARANCE REQUIRED BY (NAME/TITLE)		TIME	DATE
POINT OF CONTACT/LOCATION			PHONE
ESTIMATED TIME OF COMPLETION		ESTIMATED TIME TO RETURN EQUIPMENT TO SERVICE IN EMERGENCY	
TIME	DATE	HOURS	
PROCEDURAL STEPS FOR SHUTTING DOWN, ISOLATING, BLOCKING, AND SECURING SYSTEM TO CONTROL HAZARDOUS ENERGY			
PROCEDURAL STEPS AND RESPONSIBILITIES FOR REPLACEMENT, REMOVAL, AND TRANSFER OF LOCKOUT/TAGOUT DEVICES			
PROCEDURAL STEPS FOR PLACING AND TAGGING, AND MOVING OR REMOVING AND UNTAGGING, PROTECTIVE GROUNDS			
REQUIREMENTS FOR TESTING THE SYSTEM TO VERIFY EFFECTIVENESS OF ISOLATION AND LOCKOUT/TAGOUT DEVICES			
MEANS TO ENFORCE COMPLIANCE WITH PROCEDURES			

AUTHORIZED EMPLOYEE	ISSUING EMPLOYEE		
CLEARANCE ISSUED TO	TIME	DATE	BY
CLEARANCE RELEASED BY	TIME		DATE
CLEARANCE REMOVED BY	TIME		DATE

STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES (SCA)

NOTE: In accordance with the Service Contract Act as amended, the statement below is included in the solicitation and resulting contract. The contents are for information only and do not constitute a wage determination.

Statement of Equivalent Rates for Federal Hires (FAR 52.222-42)

In compliance with the Service Contract Act of 1965, as amended, and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

EQUIVALENT RATES FOR FEDERAL HIRES

Occupational Title	Employee Grade	Wage Rate
FOREMAN, MACHINIST; (INSPECTOR 99240)	FGE-WG11	
MACHINIST, MAINTENANCE; 23550	WG10	
WELDER; 23960	WG10	
PIPEFITTER; 23790	WG10	
MAINTENANCE TRADES HELPER, LABORER; 23580	WG5	
MATERIAL CO-ORD; 21020	WG7	
FRINGE BENEFITS: a. Life and Health Insurance b. Retirement c. Ten Paid Holidays d. Paid Sick Leave e. Paid Annual Leave (Vacation)		

End Of Appendices